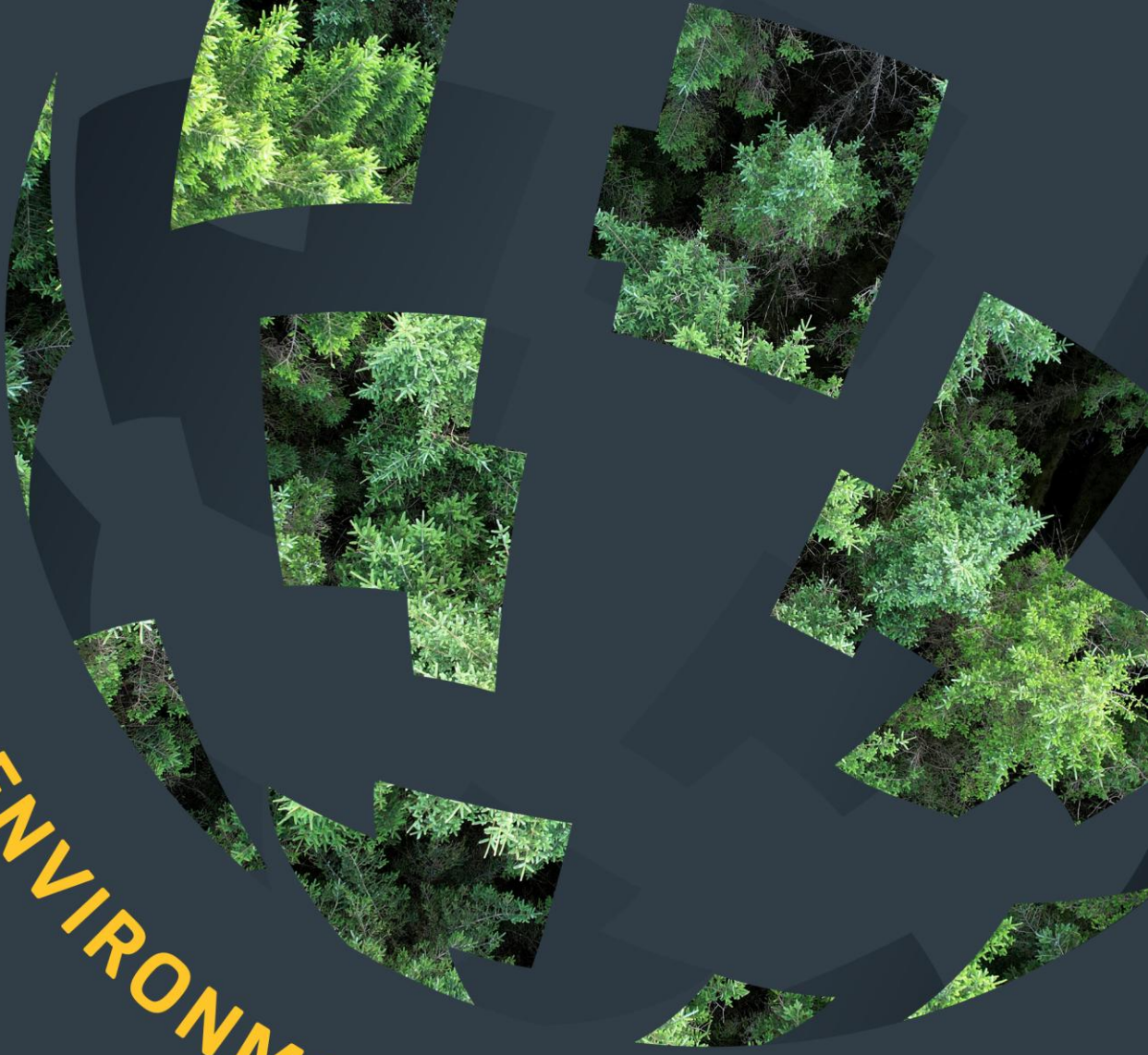




ENVIRONMENTAL LIABILITY

SITE POLLUTION LIABILITY INSURANCE
FOR
VELA INVESTMENT LP



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MOSAIC AMERICAS INSURANCE SERVICES LLC

42nd Floor, One Grand Central Place, 60 E 42nd Street, New York, NY 10165

DECLARATIONS

INSURER

Lloyd's Underwriters, whose proportional shares are shown in Endorsement 01.

UNDERWRITING REPRESENTATIVE

This Insurance Policy is issued by, or on behalf of, Mosaic Americas Insurance Services LLC ("Underwriting Representative"), as duly authorized agent of the Insurer under Service Company Underwriting Agreement, UMR B1820LNR25C514. The Underwriting Representative is not an Insurer and shall not be liable for payment of any **Loss**.

POLICY NUMBER:

PEN5133525AA

RENEWAL OF:

-

Item 1. FIRST NAMED INSURED ADDRESS

Vela Investment LP
13153 Lakeland Road
Santa Fe Springs, CA 90670

Item 2. NAMED INSUREDS

Per Endorsement, as applicable

Item 3. POLICY PERIOD

From: March 07, 2025 "Policy Inception Date"

To: March 07, 2030

Both dates at 12:00:01 a.m. at the address identified in Item 1.

Item 4. CURRENCY

United States Dollars (USD)

Item 5. PURCHASED COVERAGE SECTIONS, CONTINUITY DATES, DEDUCTIBLES AND LIMITS OF INSURANCE

THIS POLICY AFFORDS COVER ONLY FOR THOSE COVERAGE SECTIONS BELOW FOR WHICH "YES" IS INDICATED ALONGSIDE IN THE COLUMN ENTITLED "COVERAGE SECTION GRANTED?" IN ALL OTHER CASES, THERE IS NO COVERAGE.

INSURING AGREEMENT – COVERAGE SECTION		COVERAGE SECTION GRANTED?	CONTINUITY DATE	DEDUCTIBLE	LIMITS OF INSURANCE	
					EACH INCIDENT LIMIT	COVERAGE SECTION AGGREGATE LIMIT
A1.	INSURED SITES - PRE-EXISTING POLLUTION INCIDENTS					
A1.1	ON-SITE CLEAN-UP COSTS	YES	POLICY INCEPTION DATE	\$100,000	\$5,000,000	\$5,000,000
A1.2	OFF-SITE CLEAN-UP COSTS	YES	POLICY INCEPTION DATE	\$100,000	\$5,000,000	\$5,000,000
A1.3	ON-SITE DAMAGES	YES	POLICY INCEPTION DATE	\$100,000	\$5,000,000	\$5,000,000
A1.4	OFF-SITE DAMAGES	YES	POLICY INCEPTION DATE	\$100,000	\$5,000,000	\$5,000,000
A2.	INSURED SITES - NEW POLLUTION INCIDENTS					

A2.1	ON-SITE CLEAN-UP COSTS	YES	POLICY INCEPTION DATE	\$100,000	\$5,000,000	\$5,000,000
A2.2	OFF-SITE CLEAN-UP COSTS	YES	POLICY INCEPTION DATE	\$100,000	\$5,000,000	\$5,000,000
A2.3	ON-SITE DAMAGES	YES	POLICY INCEPTION DATE	\$100,000	\$5,000,000	\$5,000,000
A2.4	OFF-SITE DAMAGES	YES	POLICY INCEPTION DATE	\$100,000	\$5,000,000	\$5,000,000

INSURING AGREEMENT – COVERAGE SECTION		COVERAGE SECTION GRANTED?	CONTINUITY DATE	DEDUCTIBLE	LIMITS OF INSURANCE	
					EACH EVENT LIMIT	COVERAGE SECTION AGGREGATE LIMIT
A3.	DECONTAMINATION COSTS	YES		\$100,000	\$250,000	\$250,000

INSURING AGREEMENT – COVERAGE SECTION		COVERAGE SECTION GRANTED?	CONTINUITY DATE	DEDUCTIBLE	LIMITS OF INSURANCE	
					EACH INCIDENT LIMIT	COVERAGE SECTION AGGREGATE LIMIT
A4.	EMERGENCY COSTS	YES		\$100,000	\$5,000,000	\$5,000,000
A5.	CRISIS MANAGEMENT COSTS	YES		\$100,000	\$1,000,000	\$1,000,000
A6.	TRANSPORTATION	YES	NOT APPLICABLE	\$100,000	\$5,000,000	\$5,000,000
A7.	WASTE DISPOSAL	YES	NOT APPLICABLE	\$100,000	\$5,000,000	\$5,000,000
A8.	YOUR WORK	NO	NOT OFFERED	NOT OFFERED	NOT OFFERED	NOT OFFERED
A9.	BUSINESS INTERRUPTION	YES	NOT APPLICABLE	3 days "Deductible period"	\$5,000,000	\$5,000,000

POLICY AGGREGATE LIMIT **\$5,000,000**

Item 5.	BUSINESS INTERRUPTION - INDEMNITY PERIOD	365 Days
Item 6.	INSURED SITE(S)	13000-13132 Lakeland Road, 11010 Shoemaker Avenue, and 10947-10949 Painter Avenue/13153 Lakeland Road, Santa Fe Springs, Los Angeles County, California
Item 7.	YOUR WORK	Not Offered
Item 8.	SERVICE OF SUIT REPRESENTATIVE	Lloyd's America Inc. Attention: Legal Department, 280 Park Ave, East Tower, 25th Floor, 10017, NY

Item 9.	TERRITORIAL LIMITS	The United States of America, its territories and possessions.	
Item 10.	PREMIUM	Premium:	USD \$75,797.00
		Premium for Acts of Terrorism (TRIA):	Rejected
		Total Premium:	USD \$75,797.00

Compliance with all surplus lines placement requirements, including stamping the Policy and collection and payment of surplus lines taxes is the responsibility of the Surplus Lines Broker.

Item 11.	MINIMUM EARNED PREMIUM	100% on the Policy Inception Date
Item 12.	SURPLUS LINES BROKER	Aon Risk Services Northeast, Inc.
	BROKER NAME & ADDRESS	165 Broadway New York, NY 10006
	LICENSE NUMBER	0363334
Item 13.	POLICY COVERAGE FORM	Site Pollution Liability Insurance Form Number: P-SPL-USA-MAIS (11-24)
	ENDORSEMENTS ATTACHED TO THIS POLICY AT INCEPTION	See Schedule of Forms and Endorsements

Item 14. NOTIFICATIONS

Subject to the claims and notice reporting provisions in this Policy, all notices of **Claims, Discoveries, Pollution Incidents, Decontamination Events, Emergencies, Crisis Incidents** or **Business Interruptions** shall be sent to the manager of claims for the Underwriting Representative at:

MOSAIC AMERICAS INSURANCE SERVICES LLC
 42nd Floor, One Grand Central Place,
 60 E 42nd Street, New York, NY 10165

Attn: Head of Claims
 Email: ClaimsFNOL@mosaicinsurance.com

The Underwriting Representative shall be deemed to have received any such claim notice for and on behalf of the Insurer.

All other notices should be sent to the Underwriting Representative at:
 Email: EIL@mosaicinsurance.com

In witness whereof, the Insurer issuing this Policy has caused this Policy to be signed by its authorized officers, but it shall not be valid unless also signed by a duly authorized representative of the Insurer.

DATE: March 24, 2025


 Karen Reilly, US Head of Environmental
 Authorized Representative

SCHEDULE OF FORMS AND ENDORSEMENTS

The following forms and endorsements attach to, and form a part of the Policy, at the **Policy Inception Date**.

ENDORSEMENT		EDITION	FORM NAME
NO.	FORM NO.		
-	P-SPL-USA-MAIS	11-24	Site Pollution Liability Insurance
1	E-SPL-100-USA-MAIS	01-25	Lloyd's Underwriters' Proportional Shares
2	E-SPL-LMA9030-USA-MAIS	09-24	California Surplus Lines Notice
3	LMA5390	01-20	U.S. Terrorism Risk Insurance Act of 2002 As Amended - Not Purchased
4	E-SPL-103-USA-MAIS	07-24	Nuclear, Biological, Chemical or Radiological Exclusion
5	E-SPL-108-USA-MAIS	09-24	Affirmative Pollution Coverage for Cyber Acts
6	E-SPL-123-USA-MAIS	09-24	Broad Named Insureds with Specific Entities Scheduled
7	E-SPL-124-USA-MAIS	09-24	Additional Insureds Schedule
8	E-SPL-126-USA-MAIS	09-24	Insured Contract Schedule
9	E-SPL-136-USA-MAIS	09-24	Disclosed Documents Schedule
10	E-SPL-145-USA-MAIS	09-24	Supplementary Coverage – Contingent Business Interruption
11	E-SPL-198-USA-MAIS	09-24	Legal Costs in Addition to the Policy Aggregate Limit
12	E-SPL-MANU-USA-MAIS	09-24	Choice of Forum/Choice of Law Amendatory Endorsement
13	E-SPL-MANU-USA-MAIS	09-24	Third Party Claims Only Pre-Existing Clean-Up

IMPORTANT NOTICES

PLEASE READ THE ENTIRE POLICY CAREFULLY TO DETERMINE THE INSURED'S RIGHTS AND DUTIES, AND WHAT IS AND IS NOT COVERED. VARIOUS PROVISIONS THROUGHOUT THE POLICY RESTRICT OR EXCLUDE COVERAGE.

CONDITIONS PRECEDENT

THERE ARE CERTAIN CONDITIONS UNDER THIS POLICY THAT ARE CONDITIONS PRECEDENT TO THE INSURER'S LIABILITY TO MAKE ANY PAYMENT UNDER THE POLICY. IF THERE IS ANY FAILURE TO COMPLY WITH THESE CONDITIONS, THE INSURER MAY NOT BE LIABLE FOR ANY CLAIM MADE BY THE INSURED UNDER THE POLICY.

THERE ARE ALSO SPECIFIC CONDITIONS UNDER THIS POLICY WHICH APPLY UPON A POLLUTION INCIDENT TAKING PLACE OR THE DISCOVERY OF A POLLUTION INCIDENT, WHICH IMPOSE CERTAIN DUTIES ON THE INSURED.

CLAIMS MADE AND REPORTED TRIGGER

CERTAIN PARTS OF THIS POLICY ARE ON A CLAIMS-MADE-AND-REPORTED BASIS. THIS MEANS THAT CLAIMS MUST BE FIRST MADE AGAINST THE INSURED IN WRITING DURING THE POLICY PERIOD AND REPORTED TO THE INSURER IN WRITING DURING THE POLICY PERIOD OR, WHERE AN EXTENDED REPORTING PERIOD APPLIES, REPORTED TO THE INSURER IN WRITING DURING THE EXTENDED REPORTING PERIOD.

POLLUTION DISCOVERED AND REPORTED TRIGGER

CERTAIN PARTS OF THIS POLICY ONLY PROVIDE COVER FOR POLLUTION INCIDENTS THAT ARE FIRST DISCOVERED BY THE INSURED DURING THE POLICY PERIOD AND REPORTED TO THE INSURER IN WRITING DURING THE POLICY PERIOD OR, WHERE AN EXTENDED REPORTING PERIOD APPLIES, REPORTED TO THE INSURER IN WRITING DURING THE EXTENDED REPORTING PERIOD.

LEGAL COSTS REDUCE THE POLICY LIMITS

UNLESS EXPRESSLY STATED TO THE CONTRARY IN AN APPLICABLE ENDORSEMENT, PAYMENT OF LEGAL COSTS REDUCES THE LIMITS OF INSURANCE AVAILABLE TO PAY ANY LOSS UNDER THIS POLICY.

ENTIRE AGREEMENT

THIS POLICY, INCLUDING THE DECLARATIONS AND ANY ENDORSEMENTS ATTACHED TO AND FORMING PART OF THIS POLICY, CONSTITUTES THE ENTIRE AGREEMENT (POLICY) EXISTING BETWEEN THE **INSURED(S)** AND THE INSURER RELATING TO THIS POLICY. ANY AMENDMENTS TO THE DECLARATIONS OR ITEMS, WORDINGS OR AMOUNTS CONTAINED THEREIN SHALL BE CONSIDERED PART OF THE DECLARATIONS. THE TERM POLICY SHALL MEAN THIS POLICY, INCLUDING THE DECLARATIONS AND ANY ATTACHED ENDORSEMENTS.

POLICY INTERPRETATION

THE HEADINGS IN THIS POLICY ARE FOR EASE OF REFERENCE ONLY AND DO NOT AFFECT ITS INTERPRETATION. OTHER THAN THE HEADINGS, WORDS IN BOLD TYPEFACE USED IN THIS POLICY HAVE SPECIFIC MEANINGS ATTACHED TO THEM AS SET OUT IN SECTION II. DEFINITIONS.

ANY WORD OR EXPRESSION TO WHICH A SPECIFIC MEANING HAS BEEN ATTACHED IN THE POLICY SHALL BEAR THAT MEANING WHEREVER IT SHALL APPEAR. REFERENCES TO CLAUSE ARE TO CLAUSES OF THIS POLICY UNLESS OTHERWISE STATED. UNLESS THE CONTEXT OTHERWISE REQUIRES, WORDS IN THE SINGULAR WILL INCLUDE THE PLURAL AND VICE VERSA. UNLESS THE CONTEXT OTHERWISE REQUIRES, A REFERENCE TO ONE GENDER WILL INCLUDE A REFERENCE TO ALL GENDERS. A REFERENCE TO A PERSON INCLUDES A NATURAL PERSON, CORPORATE OR UNINCORPORATED BODY (WHETHER OR NOT HAVING A SEPARATE LEGAL PERSONALITY).

THE WORD "INCLUDING" OR SIMILAR EXPRESSION IN THIS POLICY SHALL BE DEEMED TO MEAN "INCLUDING WITHOUT LIMITATION".

ANY REFERENCE TO ANY LAW WILL INCLUDE ANY AMENDMENTS THERETO OR RE-ENACTMENT THEREOF.

I. INSURING AGREEMENT

In consideration of the payment of the premium when due, and in reliance upon the statements made in the **Application**, and subject to the terms, definitions, conditions, exclusions and limitations of this Policy (including any Endorsements), the Insurer and the **Insured** agree as follows:

A. COVERAGES

Subject at all times to the Coverage Requirements stated in Section I.B. below, all of which further define the scope of coverage afforded hereunder, the Insurer will pay each of the following components of **Loss** on behalf of the **Insured**:

A1. INSURED SITES (PRE-EXISTING POLLUTION INCIDENTS)

Solely as a result of a **Pre-Existing Pollution Incident**:

A1.1 On-Site Clean-Up Costs

On-Site Clean-Up Costs that:

- (a) the **Insured** becomes legally liable to pay as a result of a **Claim** for **Clean-Up**; or
- (b) result from a **Discovery**.

A1.2 Off-Site Clean-Up Costs

Off-Site Clean-Up Costs that:

- (a) the **Insured** becomes legally liable to pay as a result of a **Claim** for **Clean-Up**; or
- (b) result from a **Discovery**.

A1.3 On-Site Damages (for Bodily Injury or Property Damage)

On-Site Damages.

A1.4 Off-Site Damages (for Bodily Injury or Property Damage)

Off-Site Damages.

A2. INSURED SITES (NEW POLLUTION INCIDENTS)

Solely as a result of a **New Pollution Incident**:

A2.1 On-Site Clean-Up Costs

On-Site Clean-Up Costs that:

- (a) the **Insured** becomes legally liable to pay as a result of a **Claim** for **Clean-Up**; or
- (b) result from a **Discovery**.

A2.2 Off-Site Clean-Up Costs

Off-Site Clean-Up Costs that:

- (a) the **Insured** becomes legally liable to pay as a result of a **Claim** for **Clean-Up**; or
- (b) that result from a **Discovery**.

A2.3 On-Site Damages (for Bodily Injury or Property Damage)

On-Site Damages.

A2.4 Off-Site Damages (for Bodily Injury or Property Damage)

Off-Site Damages.

A3. DECONTAMINATION COSTS

Decontamination Costs resulting from a **Decontamination Event** at one or more **Insured Sites**.

A4. EMERGENCY COSTS

Emergency Costs resulting from an **Emergency**.

A5. CRISIS MANAGEMENT COSTS

Crisis Management Costs resulting from a **Crisis Incident**.

A6-8. TRANSPORTATION, WASTE DISPOSAL AND YOUR WORK

Damages and **Clean-Up Costs** that the **Insured** becomes legally liable to pay as a result of a **Claim** for **Bodily Injury, Property Damage** or **Clean-Up**, resulting from a **Pollution Incident** that:

- A6.** is caused by **Transportation**;
- A7.** arises from **Waste Disposal**; or
- A8.** is caused by **Your Work**.

A9. BUSINESS INTERRUPTION

Business Interruption Loss resulting from a **Business Interruption**.

B. COVERAGE REQUIREMENTS

Coverage under Section I. A. only applies to those Coverage Sections that have been expressly granted; solely to that portion of **Loss** enumerated within the applicable Coverage Section in Item 5. of the Declarations; and only then provided that:

1. except for Coverage Section A1, for all applicable Coverage Sections: such **Pollution Incident** commences, in its entirety, on or after any applicable **Continuity Date**; for Coverage Section A1 only: such **Pollution Incident** commenced, in whole or in part, prior to any applicable **Continuity Date**;
2. any **Claim** or **Discovery** is first made during the **Policy Period** and is reported in writing to the Insurer: (a) in accordance with the terms and conditions of the Policy; and (b) during the **Policy Period** or any applicable **Extended Reporting Period**;
3. for Coverage Section A3 only: (a) such **Decontamination Event** commences, in its entirety, during the **Policy Period**; (b) the **Decontamination Costs** are incurred by the **Insured** within the first thirty (30) consecutive days of a **Responsible Insured** first becoming aware of a **Decontamination Event** at an **Insured Site**; and (c) such **Decontamination Event** is reported in writing to the Insurer within thirty (30) days of a **Responsible Insured** first becoming aware of such **Decontamination Event** at any **Insured Site**, and such reporting is provided in accordance with the terms and conditions of the Policy and during the **Policy Period**;
4. for Coverage Section A4 only: (a) such **Emergency** results from a **Pollution Incident** that commences, in its entirety, during the **Policy Period**; (b) the **Emergency Costs** are incurred by the **Insured** within the first ten (10) consecutive days of such **Emergency** commencing; and (c) such **Emergency** is reported in writing to the Insurer within thirty (30) days of a **Responsible Insured** first becoming aware of such **Emergency**, and such reporting is provided in accordance with the terms and conditions of the Policy and during the **Policy Period**;
5. for Coverage Section A5 only: (a) such **Crisis Incident** results from a **Pollution Incident** that commences, in its entirety, during the **Policy Period**; (b) the **Crisis Management Costs** are incurred by the **Insured** within the first thirty (30) consecutive days of such **Crisis Period** commencing; and (c) the **Crisis Incident** is reported in writing to the Insurer within thirty (30) days of a **Responsible Insured** first becoming aware of such **Crisis Incident**, and such reporting is provided in accordance with the terms and conditions of the Policy and during the **Policy Period**;

6. for Coverage Section A9 only: (a) such **Business Interruption** commences, in its entirety, during the **Policy Period** and is reported in writing to the Insurer in accordance with the terms and conditions of the Policy and during the **Policy Period** or any applicable **Extended Reporting Period**; and (b) the **Insured** shall resume normal business as soon as possible and use all reasonable efforts to mitigate any **Business Interruption Loss**; and
7. the **Pollution Incident** or **Decontamination Event** occurs, and any resulting **Claim** is made, maintained and pursued, within the Territorial Limits specified in Item 9. of the Declarations.

II. DEFINITIONS

1. **Additional Insured** means any person or entity identified as an **Additional Insured** on an endorsement to the Policy.
2. **Application** means the written application form submitted to the Insurer prior to the **Policy Inception Date** by the **Named Insured**, and any information supplied to the Insurer prior to the **Policy Inception Date** by, or on behalf of, any **Insured**, in connection with and during the underwriting process for this Policy, including all items set out in a "Disclosed Documents" Endorsement, if such an endorsement is attached to this Policy.
3. **Bodily Injury** means:
 - (a) physical injury, sickness, disease or illness, sustained by a **Third Party**, including death resulting therefrom;
 - (b) mental anguish, emotional distress or shock, sustained by a **Third Party**; and
 - (c) any medical monitoring of **Third Parties**.
4. **Boundaries** means the area (inclusive of any soil, sediment, surface water or groundwater) at, on, under or within the property lines bounding a property.
5. **Business Interruption Expenses** means:
 - (a) net profit or loss (including lost rental income from **Third Party** tenants at the **Insured Site**), before taxes, that the **Insured** would have earned or incurred during the **Period of Interruption** in the normal course of business at the **Insured Site**;
 - (b) continuing normal operating expenses incurred by the **Insured** associated with the **Insured Site** during the **Period of Interruption**, including payroll expenses for employees of the **Insured**, except employees under contract, officers, executives and department managers; and
 - (c) charges to the **Insured** that would be the legal obligation of a tenant during the **Period of Interruption** under the terms of a written lease for the **Insured Site** but for such **Business Interruption**,

directly due to the **Business Interruption**.
6. **Business Interruption** means the reasonable and necessary partial or complete closure, or the reasonable and necessary partial or complete suspension, of those commercial activities carried on by the **Insured** at an **Insured Site** prior to the **Business Interruption** at such **Insured Site** solely as a direct result of a **Pollution Incident** that commences, in its entirety, on or after the applicable **Continuity Date** (if any) and that requires **Clean-**

Up to be performed at the **Insured Site**, provided that such **Clean-Up** is covered and results in **Clean-Up Costs** under this Policy.

7. **Business Interruption Loss** means **Business Interruption Expenses** and **Extra Expense** that the **Named Insured** incurs during the **Period of Interruption**.

Business Interruption Loss does not include: (1) **Clean-Up Costs**; (2) **Emergency Costs**; (3) **Crisis Management Costs**; (4) **Legal Costs**; or (5) costs to make any capital improvements.

Business Interruption Loss also does not include any loss of **Business Interruption Expenses** or **Extra Expense** associated with, in whole or part, a malicious or non-malicious cyber act, except and solely to the extent such loss of **Business Interruption Expenses** or **Extra Expense** result solely from a **Pollution Incident** caused by such cyber act.
8. **Cargo** means materials, goods, products or waste.
9. **Carrier** means a **Third Party** that is properly licensed to transport **Cargo**.
10. **Claim** means a written demand, written notice or written assertion of legal right, received by an **Insured** alleging liability or responsibility on the part of the **Insured**.
11. **Clean-Up** means the investigation, removal, disposal, treatment or remediation, including associated testing or monitoring, of a **Pollution Incident**.
12. **Clean-Up Costs** means:
 - (a) reasonable and necessary costs and expenses incurred by the **Insured** with the Insurer's prior written consent to conduct **Clean-Up**:
 - (i) to the extent and standard required by **Environmental Laws**; or
 - (ii) in the absence of any such **Environmental Laws**, to the extent and to the standard recommended in writing by an **Environmental Professional** as being necessary to protect human health and the environment;
 - (b) **Restoration Costs**;
 - (c) costs and expenses for **Clean-Up** actually incurred by a **Third Party**, including any government agency exercising its powers under **Environmental Law** to effect **Clean-Up**; and
 - (d) **Legal Costs** associated with (a) through (c) immediately above.
13. **Completed Work** means **Your Work** after it has been completed. **Your Work** shall be deemed completed at the earliest of the following:
 - (a) when all of **Your Work** called for in your contract has been completed during the **Policy Period**;
 - (b) when all of **Your Work** has been completed at a **Work Site**, if **Your Work** is to be conducted at multiple **Work Sites**; or
 - (c) when that part of **Your Work** has been put to its final intended use by any person or organization other than another contractor or subcontractor working on the same project.
Your Work that may need service, maintenance, correction, repair or replacement, but which is otherwise completed, shall be deemed completed. **Your Work** that has been abandoned shall be treated as not yet completed.

14. **Continuity Date** means the applicable date as specified for each Coverage Section in Item 5. of the Declarations.
15. **Conveyance** means an automobile, railcar, rolling stock, train, watercraft or aircraft. **Conveyance** does not include pipelines.
16. **Crisis Incident** means adverse regional or national news media coverage for the **Named Insured** resulting from a **Pollution Incident** that gives rise to a covered **Loss** under this Policy that is:
 - (a) at, on, under or migrating from an **Insured Site**;
 - (b) caused by **Transportation** (provided that the Transportation Coverage Section A6 has been expressly granted in Item 5. of the Declarations); or
 - (c) caused by **Your Work** (provided that the Your Work Coverage Section A8 has been expressly granted in Item 5. of the Declarations).
17. **Crisis Management Costs** means reasonable and necessary costs and expenses incurred during a **Crisis Period** to employ qualified public relations specialists to: (1) mitigate any materially damaging impact of a **Crisis Incident** on the **Named Insured's** reputation; and (2) maintain and/or restore public confidence in the **Named Insured**. **Crisis Management Costs** include costs to purchase advertising on television, in newspapers or in any other media to the extent incurred at the direction of a qualified public relations specialists.
18. **Crisis Period** means the period of time beginning on the date that a **Pollution Incident** that gives rise to a covered **Loss** under this Policy results in a **Crisis Incident** for the **Named Insured**, and ending on the date when there is no reasonable basis that such **Pollution Incident** has resulted in, or will continue to result in, materially adverse regional or national news media coverage against the **Named Insured**.
19. **Damages** means:
 - (a) an award or settlement of compensatory damages, including claimants' legal costs and expenses;
 - (b) where insurable by applicable law, and only to the extent insurable by such law:
 - (i) punitive, exemplary and multiplied damages; and
 - (ii) civil and administrative fines and penalties; and
 - (c) **Legal Costs** associated with (a) and (b) immediately above.

Damages does not include liquidated damages, or injunctive or equitable relief.
20. **Decontamination** means the decontamination in response to the confirmed physical presence of bacteria, viruses, human blood or human fluids, at an **Insured Site**, to the standard required by the Center for Disease Control (CDC) or the applicable municipal health department, resulting from a **Decontamination Event**.
21. **Decontamination Costs** means reasonable and necessary costs and expenses incurred by the **Insured**, with the Insurer's prior written consent, to hire a qualified **Third Party** to conduct **Decontamination**.

Decontamination Costs does not include any costs or expenses: (a) in anticipation, or for prevention, of a **Decontamination Event**; (b) for hygiene or personal protection equipment other than where used by a qualified **Third Party** in the course

of conducting **Decontamination**; or (c) for or related to any measures to prevent or mitigate the spread of a **Decontamination Event**.

22. **Decontamination Event**

means:

- (a) the discharge, dispersal, release, escape, migration or seepage of human blood, or human fluids, at an **Insured Site** resulting from suicide or violent crime; or
- (b) an outbreak of illness caused by the same, related or mutated communicable viruses or communicable bacteria (except *Legionella pneumophila*) during an uninterrupted period of at least seven (7) days, and which requires reporting by the **Insured** to the Center for Disease Control (CDC) or the applicable municipal health department.

All cases of the same, related or mutated communicable virus or bacteria during the **Policy Period**, and subsequent renewals of such insurance, shall be deemed a single **Decontamination Event**.

23. **Discovered / Discovery**

means a **Responsible Insured** first becoming aware of a **Pollution Incident** at, on, under or migrating from an **Insured Site**.

24. **Emergency**

means a situation where there is an imminent and substantial threat to human health or the environment as a direct result of a **Pollution Incident**:

- (a) at, on, under or migrating from an **Insured Site**;
- (b) caused by **Transportation** (provided that the Transportation Coverage Section A6 has been expressly granted in Item 5. of the Declarations); or
- (c) caused by **Your Work** (provided that the Your Work Coverage Section A8 has been expressly granted in Item 5. of the Declarations);

where such **Pollution Incident**:

- (a) is unexpected and unintended from the standpoint of the **Insured**; and
- (b) requires an immediate response to mitigate potential **Loss** that is covered under this Policy or would be covered but for the absence of a **Claim** against the **Insured**.

25. **Emergency Costs**

means reasonable and necessary costs and expenses to conduct:

- (a) **Clean-Up**; and/or
- (b) an evacuation of people;

to mitigate the adverse consequences of an **Emergency**.

26. **Environmental Law**

means:

- (a) any federal, state, provincial, municipal or local law, including any statute, rule, regulation, ordinance or any guidance document (including state voluntary clean-up or risk-based corrective action guidance); and
- (b) any governmental, judicial, or administrative order or directive;

applicable to a **Pollution Incident**.

27. **Environmental Professional**

means an individual who is:

- (a) duly certified or licensed in a recognized field of environmental science as required by a state board, professional association, or both; and
 - (b) approved and designated in writing by the Insurer in consultation with the **Insured**.

- 28. **Extended Reporting Period** means the Automatic Extending Reporting Period or Optional Extended Reporting Period providing an additional period of time, as applicable, following the **Policy Expiration Date**, during which the **Insured** may report a **Claim**.

- 29. **Extra Expense** means the additional expenditure over and above the **Insured's** continuing normal operating expenses necessarily and reasonably incurred by the **Named Insured**, at the **Insured Site**, with the Insurer's prior written consent, for the sole purpose of avoiding or reducing **Business Interruption Expenses** that, but for that expenditure, would have taken place during the **Period of Interruption** in consequence of the **Business Interruption**.

- 30. **First Named Insured** means the **Named Insured** entity identified in Item 1. of the Declarations.

- 31. **Fund** means any federal, state or municipal trust fund, administered insurance program, restoration funding or any other funding available (hereafter "fund") for any **Pollution Incident**, including funds related to **Underground Storage Tanks**, dry cleaning or per-and polyfluoroalkyl substances (PFAS), except in the event such "fund" is in receivership or insolvency.

- 32. **Indemnity Period** means the period beginning with the start of a **Business Interruption** and ending not later than the number of days specified in Item 5. of the Declarations thereafter, during which the results of the business have been financially affected in consequence of the **Business Interruption**.

- 33. **Insured** means:
 - (a) the **First Named Insured**;
 - (b) any **Named Insured(s)**;
 - (c) any **Additional Insured(s)**; and
 - (d) any past or present director, officer, partner, member of a corporation, manager, full time or part-time employee, temporary worker or leased worker, or volunteer of a **Named Insured**, while acting within the scope of his or her duties as such.

- 34. **Insured Contract** means:
 - (a) any written contract or agreement that is listed in an "Insured Contract Schedule" Endorsement, if such an endorsement is attached to this Policy; or
 - (b) with respect to **Your Work**, each of the following:
 - (i) a contract for lease of premises;
 - (ii) a sidetrack agreement;
 - (iii) a license agreement;
 - (iv) an easement agreement;
 - (v) an elevator maintenance agreement; and
 - (vi) except in the instance of work for a municipality, any municipal ordinance to indemnify a municipality;

but solely with respect to the Your Work Coverage Section A8 (and only provided that such Coverage Section has been expressly granted in Item 5. of the Declarations).

35. **Insured Site** means any site identified in Item 6. of the Declarations, or any site identified as an **Insured Site** on an endorsement to this Policy.
- Insured Site** does not include any **Work Site** or **Non-Owned Disposal Site**.
36. **Legal Costs** means reasonable defense, legal and other professional attorney's fees, costs and expenses, incurred by the Insurer, or the **Insured** with the Insurer's prior written consent solely: (a) in association with **Clean-Up** covered under this Policy; or (b) in the investigation, adjustment, defense or appeal of a **Claim** for covered **Bodily Injury** or **Property Damage**. **Legal Costs** include the fees and expenses of consultants, expert witnesses, accountants, court reporters, and other vendors, for goods or services in connection with such investigation, adjustment, defense or appeal of such **Claim**, whether incurred by the **Insured**, defense counsel or the Insurer.
37. **Loss** means:
- (a) **Damages**;
 - (b) **Clean-Up Costs**;
 - (c) **Decontamination Costs**;
 - (d) **Emergency Costs**;
 - (e) **Crisis Management Costs**;
 - (f) **Business Interruption Loss**; and
 - (g) **Legal Costs**.
38. **Microbial Matter** means any type or form of fungus, including mold or mildew.
39. **Named Insured** means the **First Named Insured**, and any person or entity identified in Item 2. of the Declarations or identified as a **Named Insured** on an endorsement to this Policy.
40. **Natural Resource Damage** means damages sought by a governmental, or tribal, natural resource damage trustee who is authorized to act in such capacity by a natural resource damage statute governing the assessment and restoration of natural resource damages, for physical injury to, or destruction of, and the resulting loss of use and loss of value of, land, fish, wildlife, biota, air, water, groundwater, drinking water supplies and other such resources belonging to, managed by, held in trust by, appertaining to, or otherwise controlled by the United States of America (including the resources of the fishery conservation zone established by the Magnuson-Stevens Fishery Conservation and Management Act (16 U.S.C. § 1801 et. seq.)), any state, local or provincial government, any Native American tribe, or, if such resources are subject to a trust restriction on alienation, any member of a Native American Tribe. **Natural Resource Damage** does not include **Clean-Up Costs** or **Crisis Management Costs**.
41. **New Pollution Incident** means any **Pollution Incident** that commences, in its entirety, on or after the applicable **Continuity Date** specified in Item 5. of the Declarations or in any applicable endorsement.
42. **Non-Owned Disposal Site** means any transfer, storage, treatment or disposal facility located within the Territorial Limits specified in Item 9. of the Declarations, but solely with respect to the transfer, storage, treatment or disposal of materials or waste generated (i) at an

Insured Site; (ii) during **Transportation;** (iii) in association with **Off-Site Cleanup Costs;** or (iv) as a result of **Your Work** ((i) through (iv) each only provided where the corresponding coverage has been expressly granted in Item 5. of the Declarations), provided that such facility is:

- (a) not, and never has been, owned, leased, managed, licensed or operated by any **Insured** or any parent, subsidiary, or affiliated, related or associated company of any **Insured**;
- (b) properly licensed and permitted by the appropriate federal, state or local authority to accept such waste as of the date the **Insured** delivers waste to such facility; and
- (c) not listed on a proposed or final U.S. Environmental Protection Agency (EPA) Federal National Priorities List (NPL), or on the Superfund or Comprehensive Environmental Response, Compensation and Liability Information System (CERCLIS) database, or on any equivalent state or local lists, as of the earlier of:
 - (1) the **Policy Inception Date;** or (2) the inception date of the first Pollution Liability policy issued by the Insurer to the **Insured** of which this is a continuous and uninterrupted renewal.

43. **Off-Site Clean-Up Costs** means **Clean-Up Costs**, including any associated **Legal Costs**, incurred solely to conduct **Clean-Up** beyond the **Boundaries** of an **Insured Site** of a **Pollution Incident** that has migrated from an **Insured Site**.

Off-Site Clean-Up Costs does not include any **Clean-Up Costs** to conduct **Clean-Up** at, on or under an **Insured Site** even if a purpose of such **Clean-Up** is to mitigate the adverse impact of **Pollutants** beyond the **Boundaries** of the **Insured Site**.

44. **Off-Site Damages** means **Damages** the **Insured** becomes legally liable to pay, and **Legal Costs**, as a result of a **Claim** for **Bodily Injury** or **Property Damage** resulting from a **Pollution Incident** that has migrated from an **Insured Site**, provided such **Bodily Injury** or **Property Damage** takes place while the **Third Party** injured, or property damaged, is beyond the **Boundaries** of such **Insured Site**.

45. **On-Site Clean-Up Costs** means **Clean-Up Costs**, including any associated **Legal Costs**, incurred solely to conduct **Clean-Up** at, on or under an **Insured Site**.

46. **On-Site Damages** means **Damages** the **Insured** becomes legally liable to pay, and **Legal Costs**, as a result of a **Claim** for **Bodily Injury** or **Property Damage** resulting from a **Pollution Incident** at, on or under an **Insured Site**, provided such **Bodily Injury** or **Property Damage** takes place while the **Third Party** injured, or property damaged, is within the **Boundaries** of such **Insured Site**.

47. **Period of Interruption** means the period of time starting from the end of the Deductible period and ending at the earliest of the following:

- (a) when the **Pollution Incident** is no longer the cause of interruption of business, regardless of whether the interruption continues for any other reason and regardless of whether **Clean-Up** has been completed;
- (b) when the **Named Insured** may reasonably resume normal business at the **Insured Site** or a new permanent location;
- (c) when the **Named Insured** should have resumed its normal business at the **Insured Site**, or a new site, had it used reasonable skill, speed and effort to do so;
- (d) when the **Named Insured** is no longer able to resume business for regulatory reasons; because of a breach, suspension or cancellation of, or the failure to

obtain, maintain, renew or extend, any permit, lease, license or contract, even if directly or indirectly related to a **Pollution Incident**;

- (e) when the **Named Insured** is no longer able to resume business because it is not physically possible for such business to resume;
- (f) when the **Indemnity Period** has expired; or
- (g) when any applicable Limit of Insurance shown in Item 5. of the Declarations has been exhausted.

The **Period of Interruption** shall not include any period of time prior to the commencement of normal operations at an **Insured Site**, including but not limited to any delay in the opening of or delay in the completion of construction at an **Insured Site**.

The **Period of Interruption** shall not include any increase in the length of time to resume normal business operations caused by: (i) a failure of some or all of the **Insured's** employees to return to work; (ii) delays by the regulatory authority(ies) in allowing such resumption; (iii) any loss of data or unintentional or unplanned outage of, or a reduction in functionality, availability or operation of, a computer system; or (iv) any reason, in whole or part, other than the physical presence of **Pollutants** at the **Insured Site**.

48. **Policy Expiration Date**

means:

- (a) the last date shown in Item 3. of the Declarations;
- (b) the effective date of cancellation or termination of the Policy where this is earlier; or
- (c) the date as otherwise expressly provided in an endorsement to this Policy.

49. **Policy Inception Date**

means the date identified as such in Item 3. of the Declarations.

50. **Policy Period**

means:

- (a) the period identified in Item 3. of the Declarations;
- (b) any shorter period resulting from cancellation or termination of this Policy; or
- (c) as otherwise expressly provided in an endorsement to this Policy.

51. **Pollutant**

means:

- (a) any solid, liquid, gaseous or thermal irritant or contaminant, including smoke, vapors, soot, fumes, acids, alkalis, toxic or hazardous substances, chemicals, petroleum hydrocarbons, waste (including materials to be recycled, reconditioned or reclaimed, and/or medical, infectious and pathological waste), and radioactive waste and materials, at concentrations exceeding those naturally present in the environment;
- (b) electromagnetic fields; and
- (c) **Microbial Matter** and *Legionella pneumophila*.

Pollutant does not include viruses, viroids or bacteria other than *Legionella pneumophila*.

52. **Pollution Incident**

means:

- (a) solely with respect to **Microbial Matter** or *Legionella pneumophila*: the presence of **Microbial Matter** or *Legionella pneumophila* at, on or within any buildings or structures at an **Insured Site**; and
- (b) for all other **Pollutants**:
 - (i) the discharge, dispersal, release or escape of any **Pollutant** into or upon land, any structure on land or water, any **Conveyance**, the atmosphere, or any watercourse or body of water, including surface water or groundwater; or
 - (ii) the illicit abandonment of contained or uncontained **Pollutants** at, and which originated beyond the **Boundaries** of, an **Insured Site** or, solely with respect to **Transportation**, beyond the **Boundaries** of an **Insured Site**, provided that such abandonment was committed by a **Third Party** on or after the **Policy Inception Date** and without the prior knowledge of any **Responsible Insured**.

53. **Pre-Existing Pollution Incident** means any **Pollution Incident** which commenced, in whole or in part, prior to the applicable **Continuity Date** specified in Item 5. of the Declarations or any applicable endorsement.

54. **Professional Services** means professional services performed for a fee, including: (a) the provision of advice, designs, recommendations, opinions or strategies; (b) the preparation or approval of maps, drawings, surveys, specifications, equipment selection, field orders, change orders or reports, on or for consulting, design, architectural or engineering work; or (c) supervisory or inspection activities.

55. **Property Damage** means:

- (a) physical injury to, or destruction of, tangible property of **Third Parties**, including the resulting loss of use of such property;
- (b) loss of use of real property owned by **Third Parties** that has not been physically injured or destroyed;
- (c) diminution in value of real property owned by **Third Parties**; and
- (d) **Natural Resource Damage**.

Property Damage does not include **Clean-Up Costs** or **Emergency Costs**.

56. **Responsible Insured** means:

- (a) any director, officer, principal, partner, risk manager or general counsel of the **Named Insured**;
- (b) any employee of the **Named Insured** responsible for environmental, health and/or safety matters (including compliance, management systems and controls); or
- (c) the manager of an **Insured Site** or **Work Site**.

57. **Restoration Costs** means reasonable and necessary costs incurred by the **Insured**, with the Insurer's prior written consent, solely to restore, repair or replace that particular part of real or personal property to substantially the same condition it was in prior to being physically damaged solely as a direct result of **Clean-Up** covered under this Policy, where such physical damage was necessary to enable **Clean-Up** to be undertaken.

The Insurer will pay the lesser of the actual cash value of that particular part of real or personal property which was damaged, or the cost to restore, repair or replace the physically damaged property with similar kind and quality. Actual cash value shall be adjusted, based on the judgment of the Insurer in its sole discretion, for depreciation and the physical condition of such property immediately prior to being physically damaged solely as a direct result of **Clean-Up**, including any existing damage prior to such **Clean-Up**.

Restoration Costs shall not include any costs:

- (a) to improve or better property except to the extent that the improvement or betterment entails the reasonable use of green building materials that are environmentally preferable but otherwise of similar quality to those materials that comprised the original damaged property; or
- (b) to restore, repair or replace any property:
 - (i) that required restoration, repair or replacement prior to being damaged during **Clean-Up**; or
 - (ii) damaged by the **Pollution Incident** resulting in **Clean-Up**.

For paragraph (a) immediately above:

- (a) if restoration, repair or replacement otherwise results in improvement or betterment, the Insurer will not pay for the amount of the betterment; and
- (b) green building materials must be certified as such by an applicable independent certifying body, where such certification is available, or in the absence of such certification, based on the judgment of the Insurer in its sole discretion.

58. **Terrorism**

means an act, including but not limited to the use of force or violence and/or the threat thereof, of any person or group(s) of persons, whether acting alone or on behalf of or in connection with any organization(s) or government(s), committed for political, religious, ideological or similar purposes including the intention to influence any government and/or to put the public, or any section of the public, in fear.

59. **Third Party**

means a person or entity other than: the **First Named Insured**; any **Named Insured(s)**; or any past or present director, officer, partner, member of a corporation, manager, full time or part-time employee, temporary worker or leased worker, or volunteer of a **Named Insured**, while acting within the scope of his or her duties as such.

60. **Transportation**

means the movement, which occurs beyond the **Boundaries** of an **Insured Site**, on or after the applicable **Continuity Date** (if any) of **Cargo** to or from:

- (a) an **Insured Site**; or
- (b) a **Work Site** (provided the Your Work Coverage Section A8 has been expressly granted in Item 5. of the Declarations);

by a **Conveyance** operated by the **Named Insured** or by a **Carrier** on behalf of the **Named Insured**.

Transportation includes the loading and unloading of **Cargo** onto or from a **Conveyance** at any location other than an **Insured Site** or **Work Site**.

Transportation does not include **Cargo** at rest at its final destination after it has been unloaded from a **Conveyance**.

61. **Underground Storage Tank**

means any tank (including associated pipework and ancillary equipment connected thereto) that is at, on or under an **Insured Site** during the **Policy Period**, and which has at least ten (10) percent of its combined volume underground.

Underground Storage Tank does not include:

- (a) septic tanks, sump pumps or oil/water separators;
- (b) a tank that is enclosed within a basement or cellar, if the tank is upon or above the surface of the floor; or
- (c) storm-water or wastewater collection systems.

62. **Waste Disposal**

means the treatment, storage, processing, recycling or disposal of waste at a **Non-Owned Disposal Site**, on or after the applicable **Continuity Date** (if any), provided that such waste is generated by, or on behalf of, the **Named Insured** and originated from:

- (a) an **Insured Site**; or
- (b) a **Work Site** (provided that the Your Work Coverage Section A8 has been expressly granted in Item 5. of the Declarations).

63. **Work Site**

means a site where **Your Work** is conducted.

Work Site does not include any:

- (a) **Insured Site**;
- (b) site to which waste is sent for treatment, storage, processing, recycling or disposal; or
- (c) sites owned or leased by the **Named Insured** other than any sites that are leased by the **Named Insured** on a temporary basis for the sole purpose of staging materials or equipment to be used in the performance of **Your Work**.

64. **Your Product**

means any goods or products (including materials, parts, equipment, containers, instructions, packaging, or labelling thereof), designed, manufactured, constructed, altered, serviced, repaired, treated, sold, supplied, or distributed by, or on behalf of, the **Named Insured**, and includes any warranties or representations made at any time with respect to the fitness, quality, durability, performance or use of any such goods or products.

65. **Your Work**

means only those physical activities, if any, identified in Item 7. of the Declarations, which are performed for a fee on or after the applicable **Continuity Date** (if any) at a **Work Site** by, or on behalf of, the **Named Insured**.

Your Work includes any materials, parts, plant or equipment furnished or used in connection with such work, including any representations or warranties made at any time with respect to the fitness, quality, durability, performance or use of such work.

Your Work includes the transport, loading and unloading of **Cargo** at a **Work Site**.

Your Work does not include: (1) **Transportation**; or (2) treatment, storage, processing, recycling or disposal of waste outside the **Boundaries** of the **Work Site**.

III. EXCLUSIONS

A. COMMON EXCLUSIONS APPLICABLE TO ALL COVERAGES

For all Coverage Sections, including any provided by endorsement, the Insurer shall not be liable to pay:

1. ASBESTOS AND LEAD

any **Loss** arising out of or relating to any asbestos, asbestos-containing materials, lead or lead-containing materials (including lead-based paint), in, on, at, within or applied to, any building, utility, structure or building material.

This exclusion does not apply to:

(a) Clean-Up Costs:

- (i) for **Clean-Up** of any such **Pollutants** in soil, sediment, surface water or groundwater; or
- (ii) resulting from the inadvertent displacement by an accident of asbestos, asbestos-containing materials or lead-based paint, installed or applied in, on or to any, equipment, fixture, building or structure, provided such displacement: (a) commences, in its entirety, during the **Policy Period**; and (b) is reported to the Insurer within thirty (30) days of its commencement; or

(b) Damages.

The exception to this exclusion in paragraph (a)(ii) above does not include any costs or expenses to remove, abate, repair, dispose of or otherwise address any asbestos, asbestos-containing materials or lead-based paint that has not been displaced by an accident, or to remove or dispose of any building, construction or demolition debris.

2. CONTRACTUAL LIABILITY

any **Loss** arising out of or relating to any liability that the **Insured** has assumed in a contract or agreement.

This exclusion does not apply to any liability that:

- (a) would have attached to the **Insured** in the absence of such contract or agreement; or
- (b) is assumed in an **Insured Contract**, provided that such **Insured Contract** was signed prior to the commencement of the **Pollution Incident** giving rise to a **Loss** or **Claim** hereunder.

3. CRIMINAL PUNISHMENTS

any **Loss** arising out of or relating to criminal fines, criminal penalties or criminal assessments.

4. EMPLOYERS' LIABILITY AND WORKERS' COMPENSATION

any **Loss** arising out of or relating to:

- (a) any physical injury, sickness, disease, illness, disability, mental harm, emotional distress or shock sustained by, or death of,;
 - (i) any **Insured** or a current or former employee of any **Insured's** parent, subsidiary or affiliate while engaged in employment by any **Insured** or its parent, subsidiary or affiliate; or
 - (ii) any person whose right to assert a **Claim** against any **Insured** arises by reason of any employment, blood, marital, or any relationship with any **Insured** or its parent, subsidiary or affiliate; and/or

- (b) any obligation for which any **Insured** or its insurer(s) is or may be liable under any workers' compensation, unemployment compensation, social security or disability benefits laws or similar or related laws.

This exclusion applies whether the **Insured** may be liable as an employer or in any other capacity, and applies to any obligation to share damages with or repay any **Third Party** who must pay damages arising from any such matters in paragraphs (a) and/or (b).

5. **INSURED VERSUS INSURED**

any **Loss** arising out of or relating to a **Claim** made by, or on behalf of, any **Insured** against any other **Insured**.

This exclusion does not apply to **Loss** resulting from a **Claim** made by any **Additional Insured** against any **Named Insured**.

6. **INSURED'S INTERNAL EXPENSES**

any costs, charges or expenses, including payroll expenses, incurred by the **Insured** for goods supplied or used or services performed by the **Insured** or its parent, subsidiary or affiliate, even if such costs, charges or expenses are required by **Environmental Law**.

This exclusion does not apply to **Extra Expense** to the extent covered under the Business Interruption Coverage Section A9.

7. **INSURED'S NON-COMPLIANCE**

any **Loss** arising out of or relating to a **Responsible Insured's** intentional disregard of, or deliberate, knowing, willful or dishonest non-compliance with, any **Environmental Law**, including non-compliance with any regulation applicable to air emissions or effluent discharges, or any other statute, regulation, ordinance, order, administrative complaint, notice of violation, notice letter or instruction by or on behalf of any governmental agency or representative, or other federal, state, local or other applicable legal requirement.

This exclusion does not apply to any such non-compliance to the extent that the **Responsible Insured** was acting in good faith:

- (a) in reliance upon written advice of qualified outside counsel received in advance of such non-compliance; or
- (b) under sudden and exceptional circumstances to mitigate the impact of an **Emergency**, provided such **Emergency** is reported to the Insurer, in writing, within thirty (30) days of its commencement.

8. **NUCLEAR**

any **Loss** arising out of or relating to:

- (a) ionizing radiation or contamination by radioactivity from any nuclear fuel or from any nuclear waste from the combustion of nuclear fuel;
- (b) the radioactive, toxic, explosive or other hazardous properties of any explosive nuclear assembly or nuclear component thereof;
- (c) nuclear weapons material; or
- (d) the hazardous properties of nuclear material if liability arises out of the furnishing by the **Insured** of services, material, parts or equipment, in connection with planning, construction, maintenance, operation or use of any nuclear facility.

9. **PRIOR KNOWLEDGE**

any **Loss** arising out of or relating to any **Pollution Incident** or **Decontamination Event** that:

- (a) is known by a **Responsible Insured** prior to the **Policy Inception Date** and not specifically disclosed in writing in the **Application** for this Policy, or which the **Responsible Insured** first becomes aware of after submitting its application but before the **Policy Inception Date**;
- (b) for any **Insured Site** added to this Policy during the **Policy Period**, is known by a **Responsible Insured**, and not specifically disclosed in writing to the Insurer, prior to the effective date of such addition;
- (c) for any **Work Site** first covered by this Policy after the **Policy Inception Date**, is known by a **Responsible Insured**, and not specifically disclosed in writing to the Insurer, prior to the start of **Your Work** at such **Work Site**; or
- (d) for any activities (including **Transportation**, **Waste Disposal** or **Your Work**) first covered by this Policy after the **Policy Inception Date** as a result of a merger or acquisition, is known by a **Responsible Insured**, and not specifically disclosed in writing to the Insurer, prior to the date on which this Policy first provided coverage for such activities.

10. **TERRORISM AND WAR**

any **Loss** arising out of or relating to:

- (a) **Terrorism**, regardless of any other cause or event contributing concurrently or in any other sequence to the **Loss**;
- (b) any action taken in controlling, preventing, suppressing or in any way relating to any **Terrorism**;
- (c) war, including undeclared or civil war;
- (d) war-like action by a military force, including action in hindering or defending against an actual or expected attack, by any government, sovereign or other authority using military personnel or other agents; or
- (e) insurrection, rebellion, revolution, usurped power, or action taken by governmental authority in hindering or defending against any of these.

If the Insurer alleges that by reason of this exclusion, any **Loss** is not covered by this Policy, the burden of proving the contrary shall be upon the **Insured**. In the event any portion of this exclusion is found to be invalid or unenforceable, the remainder shall remain in full force and effect.

11. **YOUR PRODUCTS**

any **Loss** arising out of or relating to **Your Products**.

This exclusion does not apply to any **Loss**:

- (a) resulting from **Your Products**:
 - (i) while they remain within the **Boundaries** of an **Insured Site**; or
 - (ii) solely with respect to Your Work Coverage Section A8, if, and to the extent that, they have been installed as part of **Your Work**; or
- (b) resulting from **Transportation** or **Waste Disposal**.

B. EXCLUSIONS APPLICABLE SOLELY TO INSURED SITES COVERAGES

Solely with respect to Insured Sites Coverage Sections A1 and A2, Decontamination Costs Coverage Section A3, Emergency Costs Coverage Section A4 with respect to **Emergencies** arising at **Insured Sites**, Crisis Management Costs Coverage Section A5 with respect to **Crisis Incidents** arising out of a **Pollution Incident** at, on, under or migrating from an **Insured Site**, and Business Interruption Coverage Section A9, in addition to the Common Exclusions in Section III. Subsection A, the Insurer shall also not be liable to pay:

1. **DIVESTED SITES**

any **Loss** arising out of or relating to any **Pollution Incident** or **Decontamination Event** at, on, under or migrating from an **Insured Site** provided that such **Pollution Incident** or **Decontamination Event** commences, in its entirety, after such **Insured Site** was vacated, sold, given away or abandoned by an **Insured**.

This exclusion does not apply to an **Insured Site** that is owned by an **Insured** and leased to a **Third Party**.

2. **MATERIAL CHANGE IN RISK**

any **Loss** arising out of or relating to a change in use or operation of an **Insured Site** from the use or operation of the **Insured Site** as of the **Policy Inception Date** or, for any **Insured Site** added to this Policy after the **Policy Inception Date**, the effective date of such addition, which constitutes a material change in risk.

For the purposes of this exclusion, a material change in risk includes a change:

- (a) that results in the imposition of more stringent clean-up standards than those that were or would have been imposed as of: (i) the **Policy Inception Date**; or (ii) the date on which an **Insured Site** was added to the Policy (whichever is later); or
- (b) that materially increases the likelihood or severity of a **Pollution Incident** occurring.

This exclusion does not apply to a change which the Insurer has given its prior written consent, which it may give or withhold at its sole discretion.

3. **UNDERGROUND STORAGE TANKS**

any **Loss** arising out of or relating to an **Underground Storage Tank**, the existence of which is known by any **Responsible Insured** as of either the **Policy Inception Date** or, for an **Insured Site** added to this Policy after the **Policy Inception Date**, the effective date of such addition.

This exclusion does not apply to:

- (a) any **Underground Storage Tank** that has been:
 - (i) closed or abandoned in place prior to the **Policy Inception Date** in accordance with all **Environmental Laws** applicable at the time of such closure or abandonment;
 - (ii) removed prior to the **Policy Inception Date**;
 - (iii) installed during the **Policy Period**;
 - (iv) installed at an **Insured Site** less than ten (10) years prior to the **Policy Inception Date**; or
 - (v) scheduled on to this Policy by endorsement; or
- (b) cesspits, cesspools or other vessels used to contain sanitary sewage.

For paragraph (a)(iv) above, in the event that any portions of such tank, pipework or ancillary equipment connected thereto were installed at different times, the date of installation of the oldest component shall be deemed the date of installation for such **Underground Storage Tank**.

C. EXCLUSIONS APPLICABLE SOLELY TO TRANSPORTATION COVERAGES

Solely with respect to Transportation Coverage Section A6, Emergency Costs Coverage Section A4 with respect to **Emergencies** arising out of **Transportation**, and Crisis Management Costs Coverage Section A5 with respect to **Crisis Incidents** arising out of **Transportation**, in addition to the Common Exclusions in Section III. Subsection A, the Insurer shall also not be liable to pay:

1. **DAMAGE TO CARGO AND CONVEYANCE**

any **Damages**, including associated **Legal Costs**, for any physical injury to, destruction of, loss of use of, or reduction in value of, **Cargo** or **Conveyances**. This exclusion shall not apply to **Claims** made by **Third Party** carriers of the **Insured** for such **Damages** arising from the **Insured's** negligence.

D. EXCLUSIONS APPLICABLE SOLELY TO YOUR WORK COVERAGES

Solely with respect to Your Work Coverage Section A8, Emergency Costs Coverage Section A4 with respect to **Emergencies** arising out of **Your Work**, and Crisis Management Costs Coverage Section A5 with respect to **Crisis Incidents** arising out of **Your Work**, in addition to the Common Exclusions in Section III. Subsection A, the Insurer shall also not be liable to pay:

1. DAMAGE TO YOUR WORK

any **Loss** arising out of or relating to **Damages** that the **Insured** becomes legally liable to pay as a result of **Property Damage to Your Work**.

2. FAULTY WORKMANSHIP

any **Loss** arising out of or relating to costs or expenses to replace, repair or rectify any property which is in a defective condition due in whole or in part to **Your Work**.

3. MATERIAL CHANGE IN OPERATIONS

any **Loss** arising out of or relating to a change in **Your Work** from the physical activities outlined to the Insurer in connection with and during the underwriting process prior to the **Policy Inception Date**, which constitutes a material change in risk.

For the purposes of this exclusion, a material change in risk includes a change:

- (a) that results in the imposition of more stringent clean-up standards than those that were or would have been imposed as of (i) the **Policy Inception Date**; or (ii) the date on which a **Work Site** was added to the Policy (whichever is later); or
- (b) that materially increases the likelihood or severity of a **Pollution Incident** occurring.

4. YOUR SITES

any **Loss** arising out of or relating to any site which is or has ever been owned, leased, managed, licensed or operated by any **Insured** or any parent, subsidiary or affiliated, related or associated company of any **Insured**.

This exclusion shall not apply to sites leased by the **Named Insured** on a temporary basis for the sole purpose of staging materials or equipment to be used in the performance of **Your Work**.

5. PROFESSIONAL SERVICES

any **Loss** arising out of or relating to the rendering of, or failure to render, **Professional Services** by any **Insured** or any parties acting on any **Insured's** behalf.

IV. LIMITS OF INSURANCE AND DEDUCTIBLES

A. LIMITS OF INSURANCE

1. Subject to the terms below, the applicable Limits of Insurance specified in Item 5. of the Declarations constitute the most the Insurer shall pay regardless of the number of **Insureds**, **Insured Sites**, **Losses**, **Claims**, claimants, **Discoveries**, **Pollution Incidents**, **Emergencies**, **Crisis Incidents**, **Decontamination Events** or **Business Interruptions**.

2. The Limits of Insurance will apply to the entire **Policy Period** and not separately to any portion of it. If the **Policy Period** is extended after the **Policy Inception Date**, the additional period will be deemed to be part of the preceding period for purposes of determining the Limits of Insurance.

3. **POLICY AGGREGATE LIMIT OF LIABILITY**

- 3.1 The Policy Aggregate Limit specified in Item 5. of the Declarations is the most that the Insurer will pay for the sum total of all **Loss** under this Policy.
- 3.2 Any amounts so paid for **Loss** shall reduce the Policy Aggregate Limit.

4. **COVERAGE SECTION AGGREGATE LIMIT OF LIABILITY**

- 4.1 Subject to the Policy Aggregate Limit, the Coverage Section Aggregate Limits specified in Item 5. of the Declarations are the most the Insurer will pay for all **Loss** under each corresponding Coverage Section granted.
- 4.2 Any amounts so paid for **Loss** shall reduce the Policy Aggregate Limit and the applicable Coverage Section Aggregate Limit.
- 4.3 The Coverage Section Aggregate Limits for Coverage Sections that have not been expressly granted in Item 5. of the Declarations are nil.

5. **EACH INCIDENT OR EVENT LIMIT OF LIABILITY**

- 5.1 Subject to the Policy Aggregate Limit and the Coverage Section Aggregate Limit, the most the Insurer will pay for all **Loss** resulting from a single **Pollution Incident**, or the same, related or continuous **Pollution Incident**, is the Each Incident Limit specified in Item 5. of the Declarations applicable to such corresponding Coverage Section unless otherwise limited by this Policy.
- 5.2 Subject to the Policy Aggregate Limit and the Coverage Section Aggregate Limit, the Each Event Limit specified in Item 5. of the Declarations is the most the Insurer will pay for all **Loss** resulting from a single **Decontamination Event**, or the same, related or continuous **Decontamination Event**, unless otherwise limited by this Policy.
- 5.3 Any amounts so paid for **Loss** shall reduce the Policy Aggregate Limit and the applicable Coverage Section Aggregate Limit.
- 5.4 The Each Incident Limit or Each Event Limit for Coverage Sections that have not been expressly granted in Item 5. of the Declarations is nil.

6. **MULTIPLE POLICY PERIODS**

The following provisions only apply if the Insurer has issued a pollution liability insurance policy to the **Named Insured** in one or more policy periods.

- 6.1 Where:

- (a) a **Claim, Discovery, Emergency, Crisis Incident** or **Business Interruption**, is first reported to the Insurer under this Policy in accordance with the terms and conditions of this Policy; and
- (b) there is **Loss** or **Claims** under a subsequent pollution liability insurance policy issued by the Insurer, which arise out of the same, related or continuous **Pollution Incident** giving rise to the **Claim, Discovery, Emergency, Crisis Incident** or **Business Interruption** first reported under this Policy;

then all such subsequent **Loss** or **Claims** shall be deemed to arise from the **Claim, Discovery, Emergency, Crisis Incident** or **Business Interruption** first reported under this Policy and shall be subject to the same terms, conditions, exclusions and limitations of this Policy (including the relevant remaining available Limits of Insurance).

Coverage under this Policy for such subsequent **Loss** or **Claims** will apply only if the **Insured** has maintained a pollution liability insurance policy with the Insurer (or one of the Insurer's affiliates), on a continuous and uninterrupted basis from the time such **Claim, Discovery, Emergency, Crisis Incident** or **Business Interruption** is first reported to the Insurer under this Policy, and such pollution liability insurance policy provides coverage the same or materially the same at that provided by the applicable Coverage Section of this Policy.

- 6.2 Where a **Claim** or **Discovery** is first made during the fourteen (14) days immediately prior to the **Policy Expiration Date**, the **Insured** renews this Policy with the Insurer, and such **Claim** or **Discovery** is first reported in writing to the Insurer within the fourteen (14) days immediately following the **Policy Inception Date** of the subsequent Policy issued by the Insurer, then the **Pollution Incident** will be deemed to have been first made and reported on the **Policy Expiration Date** of this **Policy Period**. Any coverage for such **Pollution Incident** shall be subject to the Limits of Insurance and any exclusions and other terms and conditions of this Policy. However, to the extent that any **Insured's** failure to comply with a notice or reporting requirement limits the applicability or availability of other insurance for a **Pollution Incident** for which coverage is extended under this clause 6.2, then the Insurer will only pay its share of the amount of **Loss**, if any, in excess of the amount such other insurance would have paid in absence of such failure.

B. DEDUCTIBLES

B1. NON-BUSINESS INTERRUPTION LOSS

1. Subject to the Limits of Insurance, the Insurer will pay **Damages, Clean-Up Costs, Emergency Costs, Crisis Management Costs, Decontamination Costs** and **Legal Costs**, covered by this Policy in excess of the applicable Deductible specified in Item 5. of the Declarations (or as otherwise provided by endorsement, if such an endorsement is attached to the Policy).
2. The Deductible applies to all **Damages, Clean-Up Costs, Emergency Costs, Crisis Management Costs** and **Legal Costs** resulting from a single **Pollution Incident**, or the same, related or continuous **Pollution Incidents**:
 - (a) at, on, under or migrating from a single address;
 - (b) caused by **Transportation**;
 - (c) arising from **Waste Disposal**; or
 - (d) caused by **Your Work**.
3. The Deductible applies to all **Decontamination Costs** resulting from a single **Decontamination Event**, or the same, related or continuous **Decontamination Event(s)** at a single address.
4. The **Named Insured** shall be responsible for payment of the Deductible, which is not to be insured by the Insurer.
5. Under no circumstances shall the Insurer be liable to pay any amount within the Deductible.
6. Sums paid within the Deductible do not reduce the Limits of Insurance.
7. Subject to Section VIII. General Conditions, clause 11. Other Insurance, amounts paid by valid and collectible other insurance for **Damages, Clean-Up Costs, Decontamination Costs, Emergency Costs, Crisis Management Costs** and **Legal Costs**, which, but for the existence of such other insurance, would otherwise be covered for **Loss** under this Policy, shall erode the applicable Deductible.

B2. BUSINESS INTERRUPTION LOSS

1. Subject to the Limits of Insurance, the Insurer shall pay its share of **Business Interruption Loss** covered by this Policy only after the Deductible period has ended.
2. The Deductible period applies to all **Business Interruption Loss** resulting from a single **Pollution Incident**, or the same, related or continuous **Pollution Incidents**, at on, under or migrating from an **Insured Site**.
3. The **Insured** shall be responsible for payment of all **Business Interruption Loss** arising during the Deductible period which are not to be insured.
4. Under no circumstances shall the Insurer be liable to pay any **Business Interruption Loss** arising during the Deductible period which is not to be insured.
5. **Business Interruption Loss** arising during the Deductible period do not reduce the Limits of Insurance.

C. MULTIPLE COVERAGE SECTIONS

If the same, related or continuous **Pollution Incident** results in coverage under more than one Coverage Section:

- (a) the most the Insurer shall pay for all **Loss** resulting from such **Pollution Incident** shall be limited to the highest Each Incident Limit applicable to the **Loss** specified in Item 5. of the Declarations; and
- (b) if the applicable coverages are subject to different Deductible amounts pursuant to Section IV. Limits of Insurance and Deductible, Subsection B. Deductible, only the highest Deductible applicable to the **Loss** shall apply.

D. BASIS OF SETTLEMENT FOR BUSINESS INTERRUPTION LOSS

1. In determining the amount of **Business Interruption Loss** payable under this Policy:
 - 1.1 the amounts of **Business Interruption Expenses** for the **Period of Interruption** shall be arrived at in accordance with the **Named Insured's** normal accountancy methods;
 - 1.2 the Insurer shall be entitled to take into account:
 - (a) the financial performance, including a net loss, of the business before the **Business Interruption** commenced;
 - (b) the projected future financial performance thereafter, allowing for seasonal patterns, trends, variations, and/or special circumstances, which would have affected the business had the **Business Interruption** not occurred;
 - 1.3 the Insurer shall be entitled to reduce the **Business Interruption Loss** payable under this Policy to the extent that:
 - (a) the **Insured** could completely or partially resume business at the **Insured Site** or by making use of another site(s);
 - (b) there is salvage or other value in any property obtained for temporary or other use during the **Period of Interruption**, which remains after the resumption of normal business;
 - (c) the **Insured's** obligations to pay labor costs and/or other charges or expenses are suspended during the **Period of Interruption**;
 - (d) the **Insured** is entitled to receive compensation, local or national government support, subsidies or grants, whether collected or not; and/or
 - (e) the **Insured** is entitled to receive indemnity from other valid and collectible insurance;
 - 1.4 where the **Business Interruption** is caused by a **Pollution Incident** and any other cause(s), the Insurer shall only pay that portion of **Business Interruption Loss** that the Insurer reasonably deems attributable solely and directly to the **Pollution Incident**.

V. REPORTING PROCEDURES AND CONDITIONS

1. CONTACT

All **Claims, Pollution Incidents, Discoveries, Decontamination Events, Emergencies, Crisis Incidents** or **Business Interruptions** must be reported in writing to the Insurer's Manager of Claims at the address identified in Item 14. of the Declarations or such other address(es) substituted by the Insurer in writing.

2. REPORTING

CLAIMS, DISCOVERIES, DECONTAMINATION EVENTS, EMERGENCIES, CRISIS INCIDENTS & BUSINESS INTERRUPTIONS

- 2.1 Subject to the reporting requirements stated in Section I. Insuring Agreement, the **Insured** must report a **Claim, Discovery, Pollution Incident, Decontamination Event, Emergency, Crisis Incident** or **Business Interruption** to the Insurer as soon as practicable, and in any event during the **Policy Period** or, where an **Extended Reporting Period** applies, during the **Extended Reporting Period**.
- 2.2 Such report shall state that the **Insured** is making a claim for coverage under this Policy, and include the following information, where and to the extent it is known by, or available to, the **Responsible Insured**:
 - (a) the name and contact information for the appropriate person to communicate with regarding the **Claim, Discovery, Pollution Incident, Decontamination Event, Emergency, Crisis Incident** or **Business Interruption**;
 - (b) a description of the **Pollution Incident, Decontamination Event, Emergency, Crisis Incident** and/or **Business Interruption** including how and where it took place;
 - (c) the date that the **Insured** received the **Claim**, the date the **Pollution Incident** was **Discovered**, and/or the date the **Emergency, Decontamination Event, Crisis Incident** and/or **Business Interruption** arose;
 - (d) the nature and extent of any resultant injury, damage or other adverse impact, including the names and addresses of any potential witnesses and of injured or affected parties;
 - (e) in the event that **Clean-Up** is conducted, or likely to be conducted:
 - (i) a description of such **Clean-Up**; and
 - (ii) a statement explaining why such **Clean-Up** is required by **Environmental Law**;
 - (f) the amount and type of **Business Interruption Loss** incurred, and likely to be incurred; and
 - (g) details of any mitigating actions that the **Insured** has taken and plans to take.
- 2.3 The **Insured** shall immediately forward to the Insurer, copies of any and all demands, notices, summonses or other originating legal process or legal papers received in connection with such **Claim, Pollution Incident, Decontamination Event, Emergency, Crisis Incident** or **Business Interruption** and authorize the Insurer to obtain records and other information.

VI. DEFENSE, SETTLEMENT AND SUBROGATION

A. DEFENSE

1. INSURER'S RIGHT AND DUTY TO DEFEND

- 1.1 Subject to the Limits of Insurance and any exclusions and other terms and conditions of the Policy, the Insurer shall have the right and the duty to defend the **Insured** against a **Claim** to which this Policy applies. The Insurer shall have no duty to defend the **Insured** against any **Claim** to which this Policy does not apply. The Insurer agrees that in the event of a **Claim** that is covered by this Policy, the **Insured** shall be considered as having become legally liable to pay those covered **Legal Costs** incurred in connection with the defense of such **Claim**.
- 1.2 The Insurer's duty to defend, or continue defending, the **Insured** shall cease once the applicable Limit of Insurance specified in Item 5. of the Declarations has been exhausted by payment of **Loss**.
- 1.3 **Legal Costs** reduce the Limits of Insurance and erode the applicable Deductible.
- 1.4 In event the **Insured** and the **Insurer** jointly agree to resolve a **Claim** against the **Insured** through mediation, the applicable Deductible will be decreased by fifty percent (50%) upon successful resolution, subject to a maximum reduction of \$50,000.

2. SELECTION OF LEGAL COUNSEL

INSURER'S RIGHT TO SELECT COUNSEL

- 2.1 The Insurer shall have the right to select legal counsel to represent the **Insured** for the investigation, adjustment and defense of any **Claims** covered by this Policy.
- 2.2 If more than one **Insured** is subject to a **Claim**, subject to applicable law the Insurer will appoint one counsel to defend all such **Insureds**, and all **Insureds** agree to cooperate with the investigation, defense and settlement of such **Claim**.

INSURED'S RIGHT TO INDEPENDENT COUNSEL

- 2.3 To the extent that the **Insured** is entitled by law to select independent counsel with respect to a **Claim** or suit, at the Insurer's expense, the attorney's fees and associated costs and expenses that the Insurer shall pay will be limited to those commercially reasonable hourly rates that the Insurer would pay to counsel that the Insurer would have retained, or could have otherwise retained, in the locality where the **Claim** or suit arose or is being defended.
- 2.4 Any counsel selected by the **Insured** must meet any reasonable requirements (including experience of defending similar claims, qualification standards, and Errors and Omissions insurance coverage) that the Insurer deems appropriate.
- 2.5 The **Insured** agrees that any counsel that it selects will keep the Insurer fully informed on the **Claim** and shall respond to the Insurer's requests for information in a timely manner.
- 2.6 Any **Insured** may, at any time, by signed consent, waive its right to select independent counsel.

3. CO-OPERATION AND MITIGATION

- 3.1 The **Insured** shall assist and co-operate with the Insurer in the defense, investigation, adjustment and settlement of a **Claim** and the mitigation of **Pollution Incidents, Decontamination Events, Emergencies, Crisis Incidents** and **Business Interruptions**.
- 3.2 Such assistance and co-operation may include:
 - (a) participating at meetings and legal proceedings;
 - (b) securing evidence;
 - (c) pursuing coverage that may be available from other insurance policies or indemnities for any amounts which may also be covered for **Loss** under this Policy;
 - (d) to the extent the **Insured** has rights to do so, providing the Insurer and its representatives with full access to **Insured Sites** and **Work Sites**, and permitting the Insurer to interview persons, collect documents and inspect the sites; and
 - (e) taking such actions as the Insurer deems necessary to defend, investigate, adjust or settle a **Claim**, or mitigate a **Pollution Incident, Decontamination Event, Emergency, Crisis Incident** or **Business Interruption**.
- 3.3 No such provision of access, inspection or actions in clause 3.2 above shall impose any liability, responsibility or obligation on the Insurer.
- 3.4 The **Insured's** obligations to assist and co-operate with the Insurer shall continue notwithstanding the cancellation, termination or expiration of this Policy.

B. SETTLEMENT

1. VOLUNTARY PAYMENTS AND VOLUNTARY SETTLEMENTS

It is a condition precedent to the Insurer's liability to make any payment under this Policy that, except for payments made for **Emergency Costs**, the **Insured** shall not voluntarily enter into any settlement, make any payment, assume any obligation, or admit liability with respect to any **Pollution Incident, Decontamination Event, Loss, Claim** or any other matter under this Policy, without the Insurer's prior written consent.

2. SETTLEMENT OFFERS

- 2.1 If the Insurer recommends a settlement offer for a **Claim**, which is acceptable to a claimant and is within the Limits of Insurance, and the **Insured** refuses to consent to such settlement, then the Insurer's liability shall not exceed the amount of the recommended settlement offer plus the **Legal Costs** incurred up to and including the date the Insurer recommended the settlement, less any outstanding Deductible amount, subject to the Limits of Insurance.
- 2.2 If the **Insured** refuses to consent to a settlement as described in clause 2.1 above, the Insurer has the right to withdraw from further defense and may exercise this right by tendering control of the defense to the **Insured**, at which point the Insurer's duty to defend shall end and the Insurer shall have no further obligation to reimburse **Legal Costs** incurred subsequent to that time.

3. **TRANSFER OF DEFENSE DUTIES**

- 3.1 If the Insurer concludes that any applicable Limit of Insurance of this Policy has been, or soon will be, exhausted, the Insurer will so notify the **First Named Insured** in writing as soon as possible.
- 3.2 In the event that there are ongoing legal proceedings with respect to any **Claim** against an **Insured**, and any applicable Limit of Insurance under this Policy has been exhausted, the Insurer will advise the **Insured** that the Insurer's duty to defend has ended and that the Insurer will no longer handle the defense of any ongoing **Claim** or new **Claims** against an **Insured**.
- 3.3 Thereafter, the Insurer will initiate and co-operate in the transfer of control of the defense of all **Claims** to any appropriate **Insured**.
- 3.4 Any failure by the Insurer to comply with this clause 3 will not obligate the Insurer to defend or continue to defend any **Claim** or pay any **Loss** after any applicable Limit of Insurance of this Policy is exhausted.

C. **SUBROGATION**

1. In any event of payment pursuant to the Policy:
 - 1.1 the Insurer shall be subrogated to all of the **Insured's** rights of recovery against any person or organization, including any rights to contribution from another insurer;
 - 1.2 the **Insured** shall execute and deliver instruments and papers and do whatever else is necessary to secure such rights;
 - 1.3 the **Insured** shall do nothing to impair, reduce, impede, prejudice, curtail or waive the Insurer's rights;
 - 1.4 any recovery obtained through subrogation shall accrue:
 - (a) first to the **Insured** to the extent of any payments in excess of the Limit of Insurance;
 - (b) then to the Insurer to the extent of its payments under the Policy;
 - (c) then to the **Insured** to the extent of its Deductible;
 and
 - 1.5 expenses incurred in such subrogation proceedings shall be apportioned among the interested parties in the proportion that each interested party's share in the recovery bears to the total recovery.
 - 1.6 notwithstanding anything to the contrary in this clause entitled Subrogation, the Insurer hereby waives any rights of subrogation to the extent required by written contract, provided that such contract was executed prior to the discovery of the **Pollution Incident** giving rise to **Loss**.

VII. **RIGHTS AND DUTIES**

A. **INSURED'S RIGHTS AND DUTIES**

- 1.1 The **Insured** has the duty to mitigate any **Loss** under this Policy and comply with all applicable laws.

- 1.2 Where the **Insured** has the right to carry out **Clean-Up** or **Decontamination**, the **Insured** shall also have the duty to do so to the minimum necessary extent and standard required by **Environmental Law** within a reasonable time of the **Pollution Incident** taking place or the **Discovery** of a **Pollution Incident**.
- 1.3 The **Insured** has the right to retain a qualified competent environmental consultant or remediation contractor, with the Insurer's prior written consent, to perform **Clean-Up**.
- 1.4 In addition to the **Insured's** duties under Section V. Reporting Procedures and Conditions, the **Insured** shall notify the Insurer of all actions and measures taken under this Subsection A. Any notice given by the **Insured** in accordance with this clause 1.4 is not reporting of a **Claim** by the **Insured** under the Policy.
- 1.5 The **Insured** shall bear all costs and expenses incurred or expended in connection with the discharge of its duties or exercise of its rights under this Subsection A, unless such costs and expenses are covered under Section I. Insuring Agreement of this Policy.

B. INSURER'S RIGHTS

Upon receiving notice as provided for under Section V. Reporting Procedures and Conditions or Subsection A. above:

- 1.1 The Insurer shall have the right, but not the duty, to:
 - (a) mitigate any **Loss** under this Policy if the **Insured** fails to do so;
 - (b) carry out **Clean-Up** or **Decontamination** if the **Insured** fails to do so;
 - (c) assume direct control over any or all aspects of any **Clean-Up** or **Decontamination** by the **Insured**; and
 - (d) review, participate in and approve all/any **Clean-Up** or **Decontamination** actions or decisions by the **Insured**.
- 1.2 Any costs or expenses incurred or expended by the Insurer in connection with the exercise of its rights under this Subsection B. shall be deemed incurred or expended by the **Insured** and:
 - 1.2.1 where such costs or expenses would have been covered under Section I. Insuring Agreement of this Policy if they had been incurred or expended by the **Insured**, then such costs or expenses shall be applied against the applicable Limits of Insurance and Deductible; and
 - 1.2.2 for all other costs or expenses, upon demand by the Insurer, the **Insured** shall promptly reimburse the Insurer for all such costs or expenses.

VIII. GENERAL CONDITIONS

1. ACTION AGAINST THE INSURER

- 1.1 No action brought by any organization or entity, other than an **Insured**, shall lie against the Insurer unless the **Insured** has fully complied with all of the terms and conditions of this Policy and the amount of the **Insured's** obligation to pay has been finally determined either by judgment against the **Insured** after actual trial or by written agreement of the **Insured**, the claimant and the Insurer.
- 1.2 Nothing contained herein shall give any person or entity any right to join the Insurer as a party to any action against the **Insured** to determine the **Insured's** liability, nor shall the Insurer be impleaded by the **Insured** or its legal representatives.

2. ASSIGNMENT

This Policy may only be assigned with the Insurer's prior written consent which shall be endorsed hereto, such consent not to be unreasonably withheld.

3. BANKRUPTCY

Bankruptcy or insolvency of the **Insured** or of the **Insured's** estate shall not relieve: (a) the Insurer of its obligations under this Policy; or (b) the **Insured** of its Deductible and other obligations under this Policy.

4. CANCELLATION

4.1 CANCELLATION BY THE INSURED

The **First Named Insured** may cancel this Policy by sending a written request or by returning this Policy to the Insurer, including in such request or return, the date cancellation is effective. If no such date is given, the Policy will be cancelled upon receipt of the request or Policy.

4.2 CANCELLATION BY THE INSURER

In the event of:

- (a) fraud or material misrepresentation by any **Insured**; or
- (b) any **Insured's** failure to comply with the material terms, conditions or contractual obligations under this Policy, including failure to pay any premium when due;

the Insurer may cancel this Policy by sending to the **First Named Insured** at its address set forth in the Declarations, a notice of cancellation stating the effective date of cancellation, which shall be not less than ninety (90) days (or ten (10) days for non-payment of premium when due) thereafter, provided, however, that the **First Named Insured** shall have the ability within the first sixty (60) days (or ten (10) days for non-payment of premium when due) to cure such failure to comply with the material terms, conditions or contractual obligations under this Policy to the satisfaction of the Insurer.

The **Policy Period** shall end on the cancellation date and no **Extended Reporting Period** shall apply.

This provision shall not limit the Insurer's right to rescind the Policy under applicable law.

4.3 CONDITIONS UPON CANCELLATION

The premium shall be fully earned on the **Policy Inception Date** if the **Insured** reports a **Claim, Discovery, Pollution Incident, Decontamination Event, Emergency, Crisis Incident** or **Business Interruption** that gives rise to a covered **Loss** under this Policy to the Insurer prior to the cancellation date.

In the event of cancellation under any other circumstances, the premium percentage specified in Item 11. of the Declarations shall be the minimum percentage of the premium that the Insurer earns on the **Policy Inception Date**. Thereafter, the remaining unearned premium, if any, shall be deemed earned by the Insurer on a pro-rata basis over the remainder of the **Policy Period**.

Any unearned premium due to the **First Named Insured** on cancellation of this Policy shall be tendered as soon as practicable after cancellation is effective, but tendering of such premium refund is not a condition of cancellation.

5. CHANGES

The terms, definitions, conditions, exclusions and limitations of this Policy shall only be waived or changed by endorsement issued by, or on behalf of, the Insurer and attached to this Policy.

6. CHOICE OF FORUM

The **Insured** agrees that any disputes involving, relating to, or arising out of this Policy, resulting in litigation or other forms of dispute resolution will exclusively take place in the appropriate federal or state courts in New York, New York. The **Insured** further agrees that any dispute involving, relating to, or arising out of this Policy, resulting in arbitration or other form of dispute resolution handled outside of court will take place in New York, New York.

7. CHOICE OF LAW

Any disputes involving, relating to, or arising out of this Policy, including its formation, shall be governed by the law of the State of New York without giving effect to any conflicts or choice of law principles. The terms and conditions

of this Policy shall not be deemed to constitute a contract of adhesion and shall not be construed in favor or against any party hereto by reason of authorship or otherwise.

8. **CONSENT AND APPROVAL**

Wherever the Insurer's or the **Insured's** consent or approval is required in connection with this Policy, such consent or approval shall not be unreasonably withheld, delayed, denied or conditioned. It is further agreed that this Policy imposes an obligation on each party to act reasonably and in good faith.

9. **ENFORCEABILITY**

If any part of this Policy is deemed invalid or unenforceable, it shall not affect the validity or enforceability of any other part of this Policy, which shall be enforced to the full extent permitted by law.

10. **REPRESENTATIONS AND WARRANTIES**

By acceptance of this Policy, the **Named Insured** hereby represents and warrants that the **Application** is material to the underwriting of this Policy and the Insurer issued this Policy in reliance upon such representations and warranties.

11. **OTHER INSURANCE**

11.1 PRIMARY INSURANCE

This insurance is primary, except where clause 11.3 below applies. If this insurance is primary, the Insurer's obligations are not affected unless any of the other insurance is also primary. Then, the Insurer will share with all that other insurance by the method described in clause 11.2 below.

11.2 If the other insurance permits contribution by equal shares, then this Policy will share **Loss** covered by this Policy and such other insurance by equal shares. If the other insurance does not permit contribution by equal shares, then this Policy will share **Loss** covered by this Policy and such other insurance by limits. Under this method, each insurer will calculate its share based upon the ratio of its applicable limit of insurance to the total applicable limit of insurance of all insurers.

11.3 EXCESS INSURANCE

This insurance is excess over:

- (a) any valid and collectible insurance, whether such insurance is primary, excess, contingent, self-insured retention or on any other basis with respect to **Claims, Pollution Incidents, Loss, Decontamination Events** or **Business Interruptions** arising, in whole or part, from **Microbial Matter, Legionella pneumophila, Transportation, Waste Disposal, Decontamination Events** or per-and polyfluoroalkyl substances (PFAS);
- (b) any valid and collectible property or flood insurance, whether such insurance is primary, excess, contingent, self-insured retention or on any other basis; and
- (c) any available **Fund**. If any unavailable **Fund** later becomes available, the **Insured** will reimburse the Insurer for amount previously paid by the Insurer which is recoverable from the **Fund**.

Where this insurance is excess insurance, the Insurer will only pay its share of the amount of **Loss**, if any, that exceeds the total amount of such other insurance.

12. **SANCTIONS**

The Policy does not provide any indemnity where the provision of such indemnity would expose the Insurer to any sanction, prohibition or restriction under United Nations resolutions or the trade or economic sanctions, laws or regulations of the United States of America, European Union or United Kingdom.

13. **SEPARATION OF INSURED**

Except with respect to the Limits of Insurance, the exclusions entitled Insured versus Insured and Prior Knowledge set forth in Section III. Exclusions, Subsection A, and any rights and duties specifically assigned in this Policy to the **First Named Insured**, this Policy applies:

- (a) as if each **Insured** were the only **Insured**; and
- (b) separately to each **Insured** which is making a claim under this Policy.

Misrepresentation, concealment, breach of condition or violation of any duty under this Policy by one **Insured** shall not prejudice the interest or coverage for another **Insured** who did not participate or assist in such misrepresentation, concealment, breach of condition or violation of duty, except where an **Insured** is a parent, subsidiary or affiliate of the **Insured** that misrepresented, concealed or breached a term or condition of or violated a duty under this Policy or participated or assisted therein.

14. SERVICE OF SUIT

Subject to Condition 6. above, in the event of the failure of the Insurer to pay any amount claimed to be due hereunder, the Insurer, at the request of the **Insured**, will submit to the jurisdiction of any court of competent jurisdiction within the United States. Nothing in this clause constitutes or should be understood to constitute a waiver of Insurer's rights to commence an action in any court of competent jurisdiction in the United States, to remove an action to a United States District Court, or to seek a transfer of a case to another court as permitted by the laws of the United States or of any State in the United States.

It is further agreed that service of process in such suit may be made upon the Insurer's representative designated in Item 8. of the Declarations, and that in any suit instituted against the Insurer upon this contract, the Insurer will abide by the final decision of such Court or of any Appellate Court in the event of an appeal.

The Insurer's Representative designated in Item 8. of the Declarations is authorized and directed to accept service of process on behalf of the Insurer in any such suit and/or upon the request of the **Insured** to give a written undertaking to the **Insured** that they will enter a general appearance upon the Insurer's behalf in the event such a suit shall be instituted.

Further, pursuant to any statute of any state, territory or district of the United States which makes provision therefor, Insurers hereon hereby designate the Superintendent, Commissioner or Director of Insurance or other officer specified for that purpose in the statute, or his successor or successors in office, as their true and lawful attorney upon whom may be served any lawful process in any action, suit or proceeding instituted by or on behalf of the **Insured** or any beneficiary hereunder arising out of this Policy, and hereby designate the Insurer's Representative designated in Item 8. of the Declarations as the person to whom the said officer is authorized to mail such process or a true copy thereof.

15. SOLE AGENT

The **First Named Insured** shall:

- (a) be responsible for payment of all premiums and amounts that fall within the Deductible for all other **Insureds**; and
- (b) act on behalf of all other **Insureds**:
 - (i) for the giving and receiving of notice of cancellation, termination or non-renewal;
 - (ii) for receipt and acceptance of any endorsement issued to form a part of this Policy;
 - (iii) for receipt of any return premiums that may become payable under this Policy; and
 - (iv) with respect to the exercise of any applicable **Extended Reporting Period**.

IX. EXTENDED REPORTING PERIOD

A. Automatic Extended Reporting Period

1. Where this Policy is not renewed by the **Insured** with the Insurer, upon cancellation, termination or expiration of the Policy the **Insured** shall have a ninety (90) day Automatic **Extended Reporting Period** from the **Policy Expiration Date**, provided that:
 - (a) the **Insured** has not purchased any insurance to replace this Policy; and
 - (b) the cancellation or termination of the Policy is not as a result of non-payment of premium, fraud or material misrepresentation by the **Insured**.
2. Where the Automatic **Extended Reporting Period** applies (subject to all of the terms and conditions of the Policy):
 - 2.1 a **Claim** first made against the **Insured** during the **Policy Period** that is reported to the Insurer in writing during the ninety (90) days immediately following the **Policy Expiration Date** will be deemed to have been first made and reported on the **Policy Expiration Date**, provided that the **Pollution Incident** giving rise to such **Claim** first commenced before the **Policy Expiration Date** and is otherwise covered under this Policy.
 - 2.2 a **Claim** first made against the **Insured** and reported to the Insurer in writing during the ninety (90) days immediately following the **Policy Expiration Date** will be deemed to have been first made and reported on the **Policy Expiration Date**, provided that the **Pollution Incident** giving rise to such **Claim** first commenced before the **Policy Expiration Date** and is otherwise covered under this Policy.
3. The Automatic **Extended Reporting Period** shall apply for no additional premium; however, the Automatic **Extended Reporting Period** shall not apply where the Optional **Extended Reporting Period** is purchased.

B. Optional Extended Reporting Period

1. Where this Policy is not renewed by the **Insured** with the Insurer, upon cancellation, termination or expiration of the Policy the **Insured** shall be entitled to purchase an Optional **Extended Reporting Period** for not more than thirty-six (36) months from the **Policy Expiration Date** subject to an additional premium of no more than two hundred percent (200%) of the total Policy premium, provided that:
 - (a) the **Insured** has not purchased any insurance to replace this Policy; and
 - (b) the cancellation or termination of the Policy is not as a result of non-payment of premium, fraud or material misrepresentation by the **Insured**.
2. The **First Named Insured** must elect to purchase this Optional **Extended Reporting Period** by notifying the Insurer, in writing, within thirty (30) days prior to the cancellation, termination or expiration of the Policy. It is a condition precedent to the Insurer's liability under this Optional **Extended Reporting Period** that the **First Named Insured** pay such additional premium within thirty (30) days of the cancellation, termination or expiration of the Policy.
3. The Optional **Extended Reporting Period** shall only apply to a **Claim** first made against the **Insured** and reported to the Insurer in writing during the Optional **Extended Reporting Period**, and only provided that the **Pollution Incident** giving rise to such **Claim** commenced before the **Policy Expiration Date** and is otherwise covered under this Policy.
4. Once the **Named Insured** has paid the additional premium, the Optional **Extended Reporting Period** may not be cancelled except in the event of fraud or material misrepresentation.

The Automatic **Extended Reporting Period** and Optional **Extended Reporting Period** are subject to the Limits of Insurance of this Policy. Neither the Automatic **Extended Reporting Period** or Optional **Extended Reporting Period** shall reinstate or increase any Limits of Insurance of this Policy.



MOSAIC AMERICAS INSURANCE SERVICES LLC
42nd Floor, One Grand Central Place, 60 E 42nd Street,
New York, NY 10165

ENDORSEMENT NO.01

LLOYD'S UNDERWRITERS' PROPORTIONAL SHARES

Effective Date of Endorsement:	March 07, 2025 (12:00:01 a.m. at the address in Item 1. of the Declarations)
Is attached to, forms a part of, and is subject to all the terms and conditions of, Policy:	PEN5133525AA
Issued to:	Vela Investment LP
Issued by, or on behalf of:	Mosaic Americas Insurance Services LLC on behalf of Lloyd's Underwriters

THIS ENDORSEMENT CHANGES THE POLICY. PLEASE READ IT CAREFULLY.

It is hereby agreed that the Policy to which this Endorsement is attached is amended as follows:

The following is added to the Insurer section in the Declarations:

LLOYD'S UNDERWRITERS AS FOLLOWS:	PROPORTIONAL SHARE OF RISK INSURED HEREUNDER ("PROPORTIONAL SHARE")
Mosaic Syndicate 1609 (MOS 1609)	23.1482%
Apollo Syndicate 1969 (APL 1969)	23.1482%
Flux Syndicate 1985 (FLX 1985)	7.4074%
Hampden Syndicate 2689 (HRP 2689)	2.3148%
Nephila Syndicate 2358 (NSM 2358)	18.5185%
Lancashire Syndicate 3010 (3010)	3.0833%
Lancashire Syndicate 2010 (2010)	1.5463%
RenaissanceRe Syndicate 1458 (RNR 1458)	4.6296%
QUW Syndicate 1856 (IQW1856)	9.2593%
Argenta Syndicate 2121 (ARG 2121)	6.0185%
S Amlin Syndicate 2001 (MAL 2001)	0.9259%

The obligations of each of the Lloyd's Underwriters above are limited to the extent of their Proportional Share.

ALL OTHER TERMS AND CONDITIONS OF THIS POLICY REMAIN UNCHANGED.

DATE: March 24, 2025


Karen Reilly, US Head of Environmental
Authorized Representative



MOSAIC AMERICAS INSURANCE SERVICES LLC
42nd Floor, One Grand Central Place, 60 E 42nd Street,
New York, NY 10165

ENDORSEMENT NO. 02
CALIFORNIA SURPLUS LINES NOTICE 2

Effective Date of Endorsement:	March 07, 2025 (12:00:01 a.m. at the address in Item 1. of the Declarations)		
Is attached to, forms a part of, and is subject to all the terms and conditions of, Policy:	PEN5133525AA		
Issued to:	Vela Investment LP		
Issued by, or on behalf of:	Mosaic Americas Insurance Services LLC on behalf of Lloyd's Underwriters		

THIS ENDORSEMENT CHANGES THE POLICY. PLEASE READ IT CAREFULLY.

It is hereby agreed that the Policy to which this Endorsement is attached is amended as follows:

This insurance is issued pursuant to the California Insurance Code, Sections 1760 through 1780, and is placed in an insurer or insurers not holding a Certificate of Authority from or regulated by the California Insurance Commissioner.

LMA9030
01 September 2013

ALL OTHER TERMS AND CONDITIONS OF THIS POLICY REMAIN UNCHANGED.

DATE: March 24, 2025


Karen Reilly, US Head of Environmental
Authorized Representative



MOSAIC AMERICAS INSURANCE SERVICES LLC
42nd Floor, One Grand Central Place, 60 E 42nd Street,
New York, NY 10165

ENDORSEMENT NO. 03

U.S. TERRORISM RISK INSURANCE ACT OF 2002 AS AMENDED – NOT PURCHASED

Effective Date of Endorsement:	March 07, 2025 (12:00:01 a.m. at the address in Item 1. of the Declarations)		
Is attached to, forms a part of, and is subject to all the terms and conditions of, Policy:	PEN5133525AA		
Issued to:	Vela Investment LP		
Issued by, or on behalf of:	Mosaic Americas Insurance Services LLC on behalf of Lloyd's Underwriters		

THIS ENDORSEMENT CHANGES THE POLICY. PLEASE READ IT CAREFULLY.

It is hereby agreed that the Policy to which this Endorsement is attached is amended as follows:

This Clause is issued in accordance with the terms and conditions of the "U.S. Terrorism Risk Insurance Act of 2002" as amended as summarized in the disclosure notice.

It is hereby noted that the Insurers have made available coverage for any **Loss** insured by this Policy directly resulting from an "act of terrorism" as defined in the "U.S. Terrorism Risk Insurance Act of 2002", as amended ("TRIA") and the **Insured** has declined or not confirmed to purchase this coverage.

This Policy therefore affords no coverage for any **Loss** directly resulting from any "act of terrorism" as defined in TRIA except to the extent, if any, otherwise provided by this Policy.

All other terms, conditions, insured coverage and exclusions of this Policy including applicable limits and deductibles remain unchanged and apply in full force and effect to the coverage provided by this Insurance.

LMA5390

09 January 2020

ALL OTHER TERMS AND CONDITIONS OF THIS POLICY REMAIN UNCHANGED.

DATE: March 24, 2025

Karen Reilly, US Head of Environmental

Authorized Representative



MOSAIC AMERICAS INSURANCE SERVICES LLC
42nd Floor, One Grand Central Place, 60 E 42nd Street,
New York, NY 10165

ENDORSEMENT NO. 04

NUCLEAR, BIOLOGICAL, CHEMICAL, OR RADIOLOGICAL TERRORISM EXCLUSION

Effective Date of Endorsement:	March 07, 2025 (12:00:01 a.m. at the address in Item 1. of the Declarations)	
Is attached to, forms a part of, and is subject to all the terms and conditions of, Policy:	PEN5133525AA	
Issued to:	Vela Investment LP	
Issued by, or on behalf of:	Mosaic Americas Insurance Services LLC on behalf of Lloyd's Underwriters	

THIS ENDORSEMENT CHANGES THE POLICY. PLEASE READ IT CAREFULLY.

It is hereby agreed that the Policy to which this Endorsement is attached is amended as follows:

1. The following is added to Section III. Exclusions, Subsection A. Common Exclusions Applicable to All Coverages:

NUCLEAR, BIOLOGICAL, CHEMICAL, OR RADIOLOGICAL TERRORISM

any **Loss** arising out of, or in any way related to, any act of **Nuclear, Biological, Chemical Or Radiological Terrorism**, regardless of any other cause or event that contributes concurrently or in any other sequence to the act of **Nuclear, Biological, Chemical Or Radiological Terrorism**.

2. The following are added to Section II. Definitions:

Biological Agent means any pathogenic (disease producing) micro-organism(s) and/or biological produced toxin(s), including genetically modified organisms and chemically synthesized toxin(s) which caused illness, damage, injury or death in humans, animals, or plants.

Chemical Agent means any compound which, when disseminated, produces incapacitating illness, or damaging and/or lethal effects on people, animals, plants, or property.

Nuclear, Biological, Chemical Or Radiological Terrorism means the:

- (a) dispersal, application, or release of radioactive material;
- (b) use of any nuclear weapon or device that involves or produces a nuclear reaction, nuclear radiation or radioactive contamination; or
- (c) emission, discharge, dispersal, release, or escape of any solid, liquid or gaseous **Biological Agent** and/or **Chemical Agent**;

by any person or group(s) of persons, whether acting alone, or on behalf of or in connection with any organization(s) or government(s), committed for political, religious, ideological purposes or reasons, including the intention to influence any government and/or to put the public, or any section of the public, in fear.

ALL OTHER TERMS AND CONDITIONS OF THIS POLICY REMAIN UNCHANGED.

DATE:

March 24, 2025



Karen Reilly, US Head of Environmental

Authorized Representative



MOSAIC AMERICAS INSURANCE SERVICES LLC
42nd Floor, One Grand Central Place, 60 E 42nd Street,
New York, NY 10165

ENDORSEMENT NO. 05

AFFIRMATIVE POLLUTION COVERAGE FOR CYBER ACTS

Effective Date of Endorsement:	March 07, 2025 (12:00:01 a.m. at the address in Item 1. of the Declarations)		
Is attached to, forms a part of, and is subject to all the terms and conditions of, Policy:	PEN5133525AA		
Issued to:	Vela Investment LP		
Issued by, or on behalf of:	Mosaic Americas Insurance Services LLC on behalf of Lloyd's Underwriters		

THIS ENDORSEMENT CHANGES THE POLICY. PLEASE READ IT CAREFULLY.

It is hereby agreed that the Policy to which this Endorsement is attached is amended as follows:

1. This Policy does not contain a specific exclusion for **Cyber Acts**.
2. The following is added to the definition entitled **Pollution Incident** set forth in Section II. Definitions:

For paragraph (b)(i), **Pollution Incident** includes any such discharge, dispersal, release or escape of any **Pollutant** into or upon land, any structure on land or water, any **Conveyance**, the atmosphere, or any watercourse or body of water, including surface water or groundwater caused by a malicious or non-malicious **Cyber Act**.

3. The following are added to Section II. Definitions:

Computer Network means a group of **Computer Systems** and other computing hardware devices or network facilities connected via a form of communications technology, including the internet, intranet and virtual private networks (VPN), allowing the networked computing devices to exchange **Data**.

Computer System means Information Technology (IT), industrial process control or communication systems, and any other item or element of hardware, including any IT infrastructure, software or equipment that is designed to be used for the purpose of creating, accessing, processing, protecting, monitoring, storing, retrieving, displaying or transmitting **Data**.

Computer Systems include IT devices such as laptops, external drives, CDROMs, DVD-ROMs, magnetic tapes or USB sticks that are used in **Data** processing to record and store **Data**.

Cyber Act means:

- (a) any wrongful act carried out on the **Insured's Computer System**;
- (b) any introduction, corruption, creation, modification, redirection, alteration or deletion of **Data** which, when stored or processed by a **Computer System**, may lead to an impaired, corrupted or abnormal functioning of the **Computer System** and/or the interruption or disruption of processing operations;

- (c) any infection of the **Insured's Computer System** by any hostile or intrusive software (including computer viruses, spyware, computer worms, trojan horses, rootkits, ransomware, keyloggers, dialers, spyware, adware, malicious browser helper objects and rogue security software) designed to: (1) infiltrate and disrupt computer operations; (2) gather sensitive information; or (3) gain access to **Computer Systems** without consent;
- (d) any malicious attack leading to: (1) a total or partial deprivation, disruption and/or unavailability of **Computer Systems**; or (2) **Computer Networks** being altered or rendered temporarily or permanently non-functional or otherwise unavailable to anticipated users of such **Computer Systems** or **Computer Networks** through the deluging and overloading of **Computer Systems** with an incoming stream of requests or **Data**;
- (e) any unlawful and intentional use of a threat or series of threats by an extortionist against the **Data** on an **Insured's Computer Systems** or against the **Insured's Computer Systems**, in order to extract any kind of ransom from the **Insured** by use of coercion;
- (f) any fault, defect, malfunction, error or omission in design, plan, specification, material or programming on or of the **Insured's Computer Systems**;
- (g) means an unintentional or unplanned outage of, or a reduction in functionality, availability or operation of, a **Computer System** not directly caused by physical damage; or
- (h) any negligent or inadvertent IT or Operational Technology (OT) operating error, including an error in the choice of software to be used, a set-up error or any improper IT or OT operation.

Data

means any information, including text, figures, voice, images or any machine readable data and including software or programs, that are transmitted or are stored in a digital format outside the random access memory.

ALL OTHER TERMS AND CONDITIONS OF THIS POLICY REMAIN UNCHANGED.

DATE: March 24, 2025


Karen Reilly, US Head of Environmental
Authorized Representative



MOSAIC AMERICAS INSURANCE SERVICES LLC
42nd Floor, One Grand Central Place, 60 E 42nd Street,
New York, NY 10165

ENDORSEMENT NO. 06

BROAD NAMED INSUREDS WITH SPECIFIC ENTITIES SCHEDULED

Effective Date of Endorsement:	March 07, 2025 (12:00:01 a.m. at the address in Item 1. of the Declarations)		
Is attached to, forms a part of, and is subject to all the terms and conditions of, Policy:	PEN5133525AA		
Issued to:	Vela Investment LP		
Issued by, or on behalf of:	Mosaic Americas Insurance Services LLC on behalf of Lloyd's Underwriters		

THIS ENDORSEMENT CHANGES THE POLICY. PLEASE READ IT CAREFULLY.

It is hereby agreed that the Policy to which this Endorsement is attached is amended as follows:

1. The definition entitled **Named Insured** set forth in Section II. Definitions is deleted its entirety and replaced with the following:

Named Insured means:

- (a) the **First Named Insured**;
- (b) any person or entity identified in Item 2. of the Declarations or specifically endorsed on to this Policy as a **Named Insured**; and
- (c) any corporation, company, partnership or other entity, which at the **Policy Inception Date** or for such time during the **Policy Period**, the **First Named Insured** has a 50% or more ownership interest in, but solely in respect of liability arising out of the ownership, operation, use or maintenance of an **Insured Site**.

2. The following persons or entities are added to this Policy as **Named Insureds**:

Named Insureds

- Votaw Precision Technologies, Inc.
- Cerberus Capital Management, L.P.

ALL OTHER TERMS AND CONDITIONS OF THIS POLICY REMAIN UNCHANGED.

DATE: March 24, 2025


Karen Reilly, US Head of Environmental

Authorized Representative

SSSS



MOSAIC AMERICAS INSURANCE SERVICES LLC
42nd Floor, One Grand Central Place, 60 E 42nd Street,
New York, NY 10165

ENDORSEMENT NO. 07
ADDITIONAL INSUREDS SCHEDULE

Effective Date of Endorsement:	March 07, 2025 (12:00:01 a.m. at the address in Item 1. of the Declarations)		
Is attached to, forms a part of, and is subject to all the terms and conditions of, Policy:	PEN5133525AA		
Issued to:	Vela Investment LP		
Issued by, or on behalf of:	Mosaic Americas Insurance Services LLC on behalf of Lloyd's Underwriters		

THIS ENDORSEMENT CHANGES THE POLICY. PLEASE READ IT CAREFULLY.

It is hereby agreed that the Policy to which this Endorsement is attached is amended as follows:

The following person(s) or entity(ies) is/are added to the Policy as **Additional Insureds**, provided coverage for any **Additional Insured** listed in this Endorsement applies:

- (a) solely to the extent of the **Additional Insured's** vicarious liability arising out of:
 - (i) the **Named Insured's** ownership, operation, maintenance or use of an **Insured Site**; or
 - (ii) **Insured Work** conducted by, or on behalf of, the **Named Insured** (provided that Your Work Coverage Section A8 has been expressly granted in Item 5. of the Declarations); and
- (b) only if the **Additional Insured** is named in a **Claim** as a co-defendant with the **Named Insured** alleging that such **Additional Insured** is liable on the basis described in paragraph (a) above.

No coverage is afforded to any **Additional Insured** under this Policy for **Loss** that is directly or indirectly connected with any actual or alleged act, error, omission or negligence of an **Additional Insured**.

The most the Insurer will pay for all **Loss** on behalf of any **Additional Insured** is the lesser of: (i) the amount required by written contract; and (ii) the available Limits of Insurance under this Policy. Nothing in this Endorsement shall increase any of the Limits of Insurance under this Policy.

Additional Insureds

- (i) Any entity

ALL OTHER TERMS AND CONDITIONS OF THIS POLICY REMAIN UNCHANGED.

DATE: March 24, 2025


Karen Reilly, US Head of Environmental

Authorized Representative



MOSAIC AMERICAS INSURANCE SERVICES LLC
42nd Floor, One Grand Central Place, 60 E 42nd Street,
New York, NY 10165

ENDORSEMENT NO. 08
INSURED CONTRACT SCHEDULE

Effective Date of Endorsement:	March 07, 2025 (12:00:01 a.m. at the address in Item 1. of the Declarations)		
Is attached to, forms a part of, and is subject to all the terms and conditions of, Policy:	PEN5133525AA		
Issued to:	Vela Investment LP		
Issued by, or on behalf of:	Mosaic Americas Insurance Services LLC on behalf of Lloyd's Underwriters		

THIS ENDORSEMENT CHANGES THE POLICY. PLEASE READ IT CAREFULLY.

It is hereby agreed that the Policy to which this Endorsement is attached is amended as follows:

The following contract(s) and/or agreement(s) is/are scheduled onto the Policy as an **Insured Contract(s)**:

Insured Contract(s)

- EQUITY PURCHASE AGREEMENT by and between VELA NEW PARENT LLC, as Buyer, and DOERFER CORPORATION, as Seller, and SOLELY FOR THE PURPOSES OF SECTION 4.08 AND SECTION 7.14, DAVID TAKES AND SUNDER SUBBAROYAN. Dated as of March 7, 2025.
- DISCLOSURE SCHEDULE to the EQUITY PURCHASE AGREEMENT dated as of March 7, 2025 by and between VELA NEW PARENT LLC, as Buyer, DOERFER CORPORATION, as Seller, and SOLELY FOR PURPOSES OF SECTION 4.08 AND SECTION 7.14 THEREUNDER, DAVID TAKES AND SUNDER SUBBAROYAN

ALL OTHER TERMS AND CONDITIONS OF THIS POLICY REMAIN UNCHANGED.

DATE: March 24, 2025


Karen Reilly, US Head of Environmental
Authorized Representative



MOSAIC AMERICAS INSURANCE SERVICES LLC
42nd Floor, One Grand Central Place, 60 E 42nd Street,
New York, NY 10165

ENDORSEMENT NO. 09

DISCLOSED DOCUMENTS SCHEDULE

Effective Date of Endorsement:	March 07, 2025 (12:00:01 a.m. at the address in Item 1. of the Declarations)		
Is attached to, forms a part of, and is subject to all the terms and conditions of, Policy:	PEN5133525AA		
Issued to:	Vela Investment LP		
Issued by, or on behalf of:	Mosaic Americas Insurance Services LLC on behalf of Lloyd's Underwriters		

THIS ENDORSEMENT CHANGES THE POLICY. PLEASE READ IT CAREFULLY.

It is hereby agreed that the Policy to which this Endorsement is attached is amended as follows:

Any **Pollution Incident(s)** identified in the following documents is/are deemed to have been disclosed to the Insurer:

Disclosed Documents

- Phase I Environmental Site Assessment and Limited Compliance Review, Project Diamond, PREPARED FOR McGuire Woods, LLP by Environmental Resources Management, Inc. and dated 4 January 2024

ALL OTHER TERMS AND CONDITIONS OF THIS POLICY REMAIN UNCHANGED.

DATE: March 24, 2025

Karen Reilly, US Head of Environmental

Authorized Representative



MOSAIC AMERICAS INSURANCE SERVICES LLC
42nd Floor, One Grand Central Place, 60 E 42nd Street,s
New York, NY 10165

ENDORSEMENT NO. 10

SUPPLEMENTARY COVERAGE - CONTINGENT BUSINESS INTERRUPTION

Effective Date of Endorsement:	March 07, 2025 (12:00:01 a.m. at the address in Item 1. of the Declarations)
Is attached to, forms a part of, and is subject to all the terms and conditions of, Policy:	PEN5133525AA
Issued to:	Vela Investment LP
Issued by, or on behalf of:	Mosaic Americas Insurance Services LLC on behalf of Lloyd's Underwriters

THIS ENDORSEMENT CHANGES THE POLICY. PLEASE READ IT CAREFULLY.

It is hereby agreed that the Policy to which this Endorsement is attached is amended as follows:

Solely with respect to the Coverage Section entitled Contingent Business Interruption set forth in Section I. Insuring Agreements, Subsection A. Coverages, as amended by this Endorsement, it is hereby agreed that:

1. The following is added to Item 5. of the Declarations:

INSURING AGREEMENT – COVERAGE SECTION	COVERAGE SECTION GRANTED?	CONTINUITY DATE	DEDUCTIBLE	LIMITS OF INSURANCE	
				EACH INCIDENT LIMIT	COVERAGE SECTION AGGREGATE LIMIT
Contingent Business Interruption	Yes	Policy Inception Date	7 days "Deductible Period"	\$ 2,000,000	\$ 2,000,000

2. The following are added to Item 5. of the Declarations:

Item 5c. CONTINGENT BUSINESS INTERRUPTION CO-INSURANCE SHARE

0%

Item 5d. CONTINGENT BUSINESS INTERRUPTION INDEMNITY PERIOD

30 days

3. The following is added to Section I. Insuring Agreement, Subsection A. Coverages:

CONTINGENT BUSINESS INTERRUPTION

Business Interruption Loss resulting from **Contingent Business Interruption**.

4. The following is added to Section I. Insuring Agreement, Subsection B. Coverage Requirements:

for Contingent Business Interruption Coverage Section only: (a) both the **Pollution Incident** and any **Contingent Business Interruption** resulting from such **Pollution Incident** commence, in their entirety, during the **Policy Period** and are reported to the Insurer within thirty (30) days of the beginning of the interruption, and such reporting is provided in accordance with the terms and conditions of the Policy and during the **Policy Period** or any applicable **Extended Reporting Period**; (b) such **Pollution Incident** is the legal liability of a **Third Party** and originates beyond the **Boundaries**, but within a one (1) mile radius, of the interrupted **Insured Site**; and (c) the **Insured** resumes normal **Business** as soon as possible and uses all reasonable efforts to mitigate any **Business Interruption Loss**

5. The following is added to the definition entitled **Period of Interruption** set forth in Section II. Definitions:

- (h) when the **Pollution Incident** giving rise to **Contingent Business Interruption** is within the **Boundaries** of an **Insured Site**; or
- (i) when the **Pollution Incident** has remained beyond the **Boundaries** of the **Insured Site** for a period of ten (10) consecutive days without imminent and substantial threat to human health at such **Insured Site**.

6. The definitions entitled Baseline Period, Business Interruption Loss and Indemnity Period are deleted in their entirety and replaced with the following:

Baseline Period means the 12-month period immediately preceding the date the **Contingent Business Interruption** commenced, or if the **Business** operated less than 12 months preceding the date the **Contingent Business Interruption** commenced, the entire period prior to the date the **Contingent Business Interruption** commenced.

Business Interruption Loss means **Loss of Profit** that the **Named Insured** incurs during the **Period of Interruption**.

Business Interruption Loss does not include: (1) **Clean-Up Costs**; (2) **Emergency Costs**, (3) **Crisis Management Costs**; (4) **Legal Costs**; (5) loss of market, loss of investment income, or any other consequential loss; (6) interest charges on any loans; (7) taxes; (8) costs related to the revocation, suspension or amendment of any permits, licenses, consents or authorizations; (9) intangible costs (including impaired goodwill and damage to reputation); (10) costs to make any capital improvements; (11) legal and accounting costs, fees and expenses; and (12) commissions to **Third Parties**.

Business Interruption Loss also does not include any **Loss of Profit** associated with, in whole or part, a malicious or non-malicious cyber act, except and solely to the extent such **Loss of Profit** result solely from a **Pollution Incident** caused by such cyber act. **Business Interruption Loss** does not include **Extra Expense**.

Indemnity Period means the period beginning with the start of a **Contingent Business Interruption** and ending not later than the number of days specified in Item 5b. of the Declarations thereafter, during which the results of the **Business** have been financially affected in consequence of the **Contingent Business Interruption**.

7. The following is added to Section III. Exclusions:

EXCLUSIONS APPLICABLE SOLELY TO CONTINGENT BUSINESS INTERRUPTION COVERAGE

Solely in respect of Contingent Business Interruption Coverage Section, in addition to the Common Exclusions in Section III. Subsection A, the Insurer shall also not be liable to pay:

PFAS

any **Loss** arising out of or relating to **PFAS**.

TERRORISM

any **Loss** arising out of or relating to **Terrorism**.

8. The following definitions are added to Section II. Definitions:

Contingent Business Interruption

means the reasonable and necessary partial or complete closure, or the reasonable and necessary partial or complete suspension, of **Business** at an **Insured Site** ordered by a local, state or federal government, regulatory authority, or a law enforcement or public emergency department solely as a direct result of a **Pollution Incident** that commences, in its entirety, on or after the **Policy Inception Date**, provided such **Pollution Incident** is the legal liability of a **Third Party** and originates beyond the **Boundaries**, but within a one (1) mile radius, of the interrupted **Insured Site**.

PFAS

means any (a) perfluorinated compounds or chemicals (PFCs); (b) per- or polyfluoroalkyl substances (PFAS); (c) perfluoroalkyl-containing materials; (d) polyfluoroalkyl-containing materials; and (e) products, materials or substances which contain PFAS due to adsorption onto such other products, materials or substances.

PFAS includes, but is not limited to (a) perfluorobutane sulfonate (PFBS), perfluorohexane sulfonate (PFHxS), perfluorohexanoic acid (PFHxA), perfluorooctanoic acid (PFOA, also known as C8), perfluorooctane sulfonate (PFOS), perfluorononanoic acid (PFNA), perfluorodecanoic acid (PFDA), 8+2 fluorotelomer alcohol, and 8:2 FTOH; (b) all perfluoroalkyl acids (PFAAs), including PFCAs (per-polyfluoroalkyl carboxylic acids), PFSA (per-polyfluoroalkane sulfonic acids), PFPA (per-polyfluoroalkyl phosphonic acids) and PFPIA (per-polyfluoroalkyl phosphinic acids); (c) all per-and polyfluoroalkane sulfonyl fluoride (PASf) and PASf-based derivatives; (d) all per-and polyfluoroalkyl iodides (PFAI), including FTIs (fluorotelomer iodides) and FTI-derivatives; (e) all per-and polyfluoroalkyl ethers (PFPE) and PFPE-based derivatives, including polyfluoroalkyl ether carboxylic acids; (f) all fluoropolymers, including PTFE (polytetrafluoroethylene), PVDF (polyvinylidene fluoride), FEP (fluorinated ethylene propylene) and PFA (perfluoroalkoxyl polymer); (g) all side-chain fluorinated polymers, including fluorinated (meth) acrylate polymers, fluorinated urethane polymers and fluorinated oxetane polymers; (h) all perfluoropolyethers; (i) Aqueous Film Forming Foams (AFFF) containing PFAS, or any additives or component materials contained therein or degradation by-products thereof; and (j) the derivatives, salts, isomers, precursors and degradation, breakdown and daughter products of any of the above.



9. Reference to **Business Interruptions** in Item 14. of the Declarations is replaced with **Contingent Business Interruptions**.
10. All references to **Business Interruption(s)** set forth in Section IV. Limits of Insurance and Deductibles are replaced with **Contingent Business Interruption(s)**.
11. All references to **Business Interruption(s)** in Section V. Reporting Procedures and Conditions are replaced with **Contingent Business Interruption(s)**.
12. All references to **Business Interruption(s)** in clause 3. set forth in Section VI. Defense, Settlement and Subrogation are replaced with **Contingent Business Interruption(s)**.
13. Reference to **Business Interruption(s)** in clause 4.3 set forth in Section VIII. General Conditions is replaced with **Contingent Business Interruption(s)**.

ALL OTHER TERMS AND CONDITIONS OF THIS POLICY REMAIN UNCHANGED.

DATE: March 24, 2025

A handwritten signature in black ink that reads "Karen Reilly". The signature is written in a cursive, flowing style.

Karen Reilly, US Head of Environmental

Authorized Representative



MOSAIC AMERICAS INSURANCE SERVICES LLC
42nd Floor, One Grand Central Place, 60 E 42nd Street,
New York, NY 10165

ENDORSEMENT NO. 11

LEGAL COSTS IN ADDITION TO THE POLICY AGGREGATE LIMIT

Effective Date of Endorsement:	March 07, 2025 (12:00:01 a.m. at the address in Item 1. of the Declarations)		
Is attached to, forms a part of, and is subject to all the terms and conditions of, Policy:	PEN5133525AA		
Issued to:	Vela Investment LP		
Issued by, or on behalf of:	Mosaic Americas Insurance Services LLC on behalf of Lloyd's Underwriters		

THIS ENDORSEMENT CHANGES THE POLICY. PLEASE READ IT CAREFULLY.

It is hereby agreed that the Policy to which this Endorsement is attached is amended as follows:

1. The following are added to Item 5. of the Declarations:

ADDITIONAL LEGAL COSTS AGGREGATE LIMIT

\$ 1,250,000

TOTAL AGGREGATE LIMIT

\$ 6,250,000

(being the sum of the POLICY AGGREGATE LIMIT and the
ADDITIONAL LEGAL COSTS AGGREGATE LIMIT)

2. The following is added to Section IV. Limits of Insurance and Deductible, Subsection A. Limits of Insurance:

LEGAL COSTS IN ADDITION TO THE POLICY AGGREGATE LIMIT

Notwithstanding anything in this Policy to the contrary, the Insurer will pay in addition to the Policy Aggregate Limit specified in Item 5. of the Declarations, **Legal Costs** up to and not exceeding the Additional Legal Costs Aggregate Limit specified in this endorsement.

The Additional Legal Costs Aggregate Limit is the most that the Insurer shall pay for any such costs, irrespective of the number of **Losses, Claims**, claimants or **Pollution Incidents**, and irrespective of whether or not the Policy Aggregate Limit has been partially or wholly eroded.

The most that the Insurer will pay for the sum total of all **Loss** (including **Legal Costs** in addition to the Policy Aggregate Limit) under this Policy shall be the Total Aggregate Limit specified in this Endorsement.

continued.../

LEGAL COSTS IN ADDITION TO THE POLICY AGGREGATE LIMIT



ALL OTHER TERMS AND CONDITIONS OF THIS POLICY REMAIN UNCHANGED.

DATE:

March 24, 2025

A handwritten signature in black ink that reads "Karen Reilly". The signature is written in a cursive, flowing style.

Karen Reilly, US Head of Environmental

Authorized Representative



MOSAIC AMERICAS INSURANCE SERVICES LLC
42nd Floor, One Grand Central Place, 60 E 42nd Street,
New York, NY 10165

ENDORSEMENT NO. 12

CHOICE OF FORUM / CHOICE OF LAW AMENDATORY ENDORSEMENT

Effective Date of Endorsement:	March 07, 2025 (12:00:01 a.m. at the address in Item 1. of the Declarations)		
Is attached to, forms a part of, and is subject to all the terms and conditions of, Policy:	PEN5133525AA		
Issued to:	Vela Investment LP		
Issued by, or on behalf of:	Mosaic Americas Insurance Services LLC on behalf of Lloyd's Underwriters		

THIS ENDORSEMENT CHANGES THE POLICY. PLEASE READ IT CAREFULLY.

It is hereby agreed that the Policy to which this Endorsement is attached is amended as follows:

Section VIII. GENERAL CONDITIONS, Subsections 6. and 7. are deleted in their entirety and replaced with the following:

1. CHOICE OF FORUM

The **Insured** agrees that any disputes involving, relating to, or arising out of this Policy, resulting in litigation or other forms of dispute resolution will exclusively take place in the appropriate federal or state courts in California. The **Insured** further agrees that any dispute involving, relating to, or arising out of this Policy, resulting in arbitration or other form of dispute resolution handled outside of court will take place in California.

2. CHOICE OF LAW

Any disputes involving, relating to, or arising out of this Policy, including its formation, shall be governed by the law of the State of California without giving effect to any conflicts or choice of law principles. The terms and conditions of this Policy shall not be deemed to constitute a contract of adhesion and shall not be construed in favor or against any party hereto by reason of authorship or otherwise.

ALL OTHER TERMS AND CONDITIONS OF THIS POLICY REMAIN UNCHANGED.

DATE: March 24, 2025


Karen Reilly, US Head of Environmental
Authorized Representative



MOSAIC AMERICAS INSURANCE SERVICES LLC
42nd Floor, One Grand Central Place, 60 E 42nd Street,
New York, NY 10165

ENDORSEMENT NO. 13

THIRD PARTY CLAIMS ONLY PRE-EXISTING CLEAN-UP

Effective Date of Endorsement:	March 07, 2025 (12:00:01 a.m. at the address in Item 1. of the Declarations)		
Is attached to, forms a part of, and is subject to all the terms and conditions of, Policy:	PEN5133525AA		
Issued to:	Vela Investment LP		
Issued by, or on behalf of:	Mosaic Americas Insurance Services LLC on behalf of Lloyd's Underwriters		

THIS ENDORSEMENT CHANGES THE POLICY. PLEASE READ IT CAREFULLY.

It is hereby agreed that the Policy to which this Endorsement is attached is amended as follows:

Solely with respect to any **Pollution Incident** at, on, under or migrating from any corresponding **Insured Site** scheduled in Table 1. below arising out of or related to any corresponding scheduled **Pollutant** and solely with respect to **Loss** covered under this Policy for **On-Site Clean-Up Costs** or **Off-Site Clean-Up Costs** resulting from a **Pre-Existing Pollution Incident**, it is hereby agreed that:

1. Clauses A1.1(b) and A1.2(b) are deleted in their entirety.

Table 1. **INSURED SITES & SCHEDULED POLLUTANT(S)**

Site No.	Site Address	Scheduled Pollutant(s)
1.	All Insured Sites	Chlorinated solvents

Scheduled **Pollutant(s)** shall also include any additive to, or derivative, salt, isomer, precursor, or degradation, breakdown or daughter product of such **Pollutant(s)**.

ALL OTHER TERMS AND CONDITIONS OF THIS POLICY REMAIN UNCHANGED.

DATE: March 24, 2025


Karen Reilly, US Head of Environmental
Authorized Representative

ABOUT MOSAIC

Mosaic is a next-generation, global specialty insurer harnessing visionary leadership, exceptional underwriting talent, a focus on complex product lines, and a digitized operating model.

Coupling Lloyd's Syndicate 1609 with a wholly-owned syndicated capital management agency, Mosaic is uniquely positioned to offer capacity and custom service to clients in markets around the world.

We leverage the legacy of Lloyd's, along with the market's global license network and financial-strength ratings.

mosaicinsurance.com



@Mosaic1609

OUR RATINGS

A+

Superior

AM Best

AA-

Very strong

Standard & Poor's

AA-

Very strong

Fitch Ratings

